



Mathew Tyler

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Plaintiff, *Pro per pro se*

Dated: May 8, 2025

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS,

**JUDGE DENNIS M. COTA, in his official capacity as United States Magistrate
Judge,**

NINTH CIRCUIT COURT OF APPEALS,

US DEPARTMENT OF JUSTICE, et al.,

US ATTORNEY'S OFFICE NORTHERN CALIFORNIA, ET AL.,

**BENJAMIN C. MIZER, ET SEQ., IN OFFICIAL CAPACITY AS PRINCIPAL
DEPUTY ASSOCIATE ATTORNEY GENERAL, US DEPARTMENT OF
JUSTICE,**

CALIFORNIA ATTORNEY GENERAL,

SHIRLEY WEBER, in her official capacity as California Secretary OF STATE,

1 FIONA MA, in her official capacity as California State TREASURER,
2 JAMES GALLAGHER, IN OFFICIAL CAPACITY AS CA. ASSEMBLYMAN
3 WASHINGTON US ATTORNEY / DOJ,
4 UTAH LT. GOVERNOR,
5 UTAH ATTORNEY GENERAL,
6 NEW HAMPSHIRE DOJ,
7 RHODE ISLAND EEOC,
8 DOES 1-50,
9 *Defendants.*

10 -----/

11 **FIRST AMENDED COMPLAINT FOR TREASON, VIOLATION OF**
12 **CIVIL RIGHTS, CONSPIRACY, OBSTRUCTION OF JUSTICE,**
13 **RICO, AND OTHER CRIMES**

14

15 **JURY TRIAL DEMANDED**

16

17 **NOTICE: This document requires reasonable accommodations for review pursuant**
18 **to the Americans with Disabilities Act (42 U.S.C. § 12101 et seq.) and Section 504 of**
19 **the Rehabilitation Act (29 U.S.C. § 794). The interactive process required by law**
20 **must be engaged in prior to any determination regarding this filing.**

21 **I. INTRODUCTION**

22 1. Plaintiff, Mathew Tyler, is an indigent layperson, a U.S. citizen, resident of
23 California, and a 2016-2084 U.S. Presidential candidate. Mr. Tyler is a qualified
24 individual with a disability under the Americans with Disabilities Act ("ADA")
25 and Section 504 of the Rehabilitation Act. Mr. Tyler's disabilities substantially
26 limit major life activities.

27 2. Defendants are various federal and state entities, officials, and individuals,
28 including the 118th U.S. Congress, Judge Dennis M. Cota, the Ninth Circuit Court

- 1 of Appeals, the U.S. Department of Justice, the California Secretary of State, and
2 others, who are sued in their official and individual capacities as appropriate.
- 3 3. DOES 1-50 are other state and federal officials whose identities are currently
4 unknown to Plaintiff.
- 5 4. This action concerns Defendants' blatant disregard for the U.S. Constitution,
6 federal laws, and international treaties protecting the civil rights of individuals
7 with disabilities. Defendants' unlawful actions have deprived Mr. Tyler of his
8 fundamental rights, including the right to vote, the right to participate in the
9 electoral process, and the right to equal protection under the law.
- 10 5. Defendants' actions constitute treason, deprivation of rights under color of law,
11 conspiracy against rights, discrimination on the basis of disability, obstruction of
12 justice, racketeering, and numerous other violations of federal and state laws.
- 13 6. This First Amended Complaint adds Judge Dennis M. Cota and the Ninth Circuit
14 Court of Appeals as defendants based on their participation in the conspiracy to
15 obstruct justice and deprive Plaintiff of his constitutional and statutory rights. As
16 detailed herein, both Judge Cota and the Ninth Circuit have systematically refused
17 to provide relief justified by the overwhelming evidence presented in Plaintiff's
18 filings, demonstrating their active participation in the ongoing civil rights
19 violations.
- 20 7. Mr. Tyler seeks immediate declaratory and immediate, preliminary and permanent
21 injunctive relief, reassignment to a different trier of fact, U.S. Marshal Service for
22 service of process, leave to file additional amendments as necessary, provision of
23 resources paid for with the public purse that Plaintiff has been deprived of without
24 due process, compensatory and punitive damages, attorneys' fees, and other
25 appropriate remedies to redress the grievous harm caused by Defendants' unlawful
26 conduct.
- 27 8. As Plaintiff is proceeding in forma pauperis pursuant to 28 U.S.C. § 1915,
28 Plaintiff is entitled to have the U.S. Marshal Service effect service on the newly
29 added defendants. The Ninth Circuit has consistently held that "a plaintiff
30 proceeding in forma pauperis is entitled to rely on the U.S. Marshal for service"
31 and that "the court must appoint the marshal to effect service." Puett v. Blandford,
32 912 F.2d 270, 273, 275 (9th Cir. 1990); see also Walker v. Sumner, 14 F.3d 1415,
33 1422 (9th Cir. 1994), abrogated on other grounds by Sandin v. Conner, 515 U.S.
34 472 (1995).

II. JURISDICTION AND VENUE

1. This Court has jurisdiction over this action pursuant to 28 U.S.C. § 1331 (federal question jurisdiction), 28 U.S.C. § 1343 (civil rights jurisdiction), 18 U.S.C. § 1964 (RICO jurisdiction), and 42 U.S.C. § 12133 (ADA jurisdiction).
2. This Court retains jurisdiction notwithstanding the addition of judicial defendants. The Supreme Court has recognized that federal courts have jurisdiction over claims against judicial officers where, as here, the judicial defendants have acted in the "clear absence of all jurisdiction" or have engaged in non-judicial acts. See *Forrester v. White*, 484 U.S. 219, 227 (1988); *Stump v. Sparkman*, 435 U.S. 349, 356-57 (1978). Judge Cota and the Ninth Circuit Court of Appeals have exceeded their judicial function by actively participating in a conspiracy to obstruct justice and deprive Plaintiff of constitutional and statutory rights, as detailed herein.
3. Under the All Writs Act, 28 U.S.C. § 1651(a), this Court has authority to issue "all writs necessary or appropriate in aid of [its] respective jurisdiction[] and agreeable to the usages and principles of law." This includes the power to address misconduct by judicial officers that threatens the integrity of proceedings. See *Cheney v. U.S. Dist. Court for D.C.*, 542 U.S. 367, 380 (2004); *Ex parte Republic of Peru*, 318 U.S. 578, 583 (1943).
4. Venue is proper in this district pursuant to 28 U.S.C. § 1391(b) as a substantial part of the events giving rise to the claim occurred in this district. Venue is also proper under 18 U.S.C. § 1965(a) as numerous defendants reside, are found, have agents, or transact affairs in this district.
5. Under the "effects test" established in *Calder v. Jones*, 465 U.S. 783 (1984), and applied by the Ninth Circuit in *Yahoo! Inc. v. La Ligue Contre Le Racisme Et L'Antisemitisme*, 433 F.3d 1199, 1206 (9th Cir. 2006), this Court has personal jurisdiction over all Defendants as they have: (1) committed intentional acts, (2) expressly aimed at this forum, (3) causing harm that they knew was likely to be suffered in this forum.

III. PARTIES

A. Plaintiff

1. Plaintiff MATHEW TYLER is a qualified individual with disabilities as codified by 42 U.S.C. § 12131(2), specifically affected by Central core disease (impacting manual tasks, walking, standing, lifting, bending, breathing, and stamina) and

- 1 ADHD (affecting learning, reading, concentrating, thinking, communicating, and
2 working).
- 3 2. Plaintiff is a crime victim as defined by 18 U.S.C. § 3771 and California
4 Constitution Article 1 § 28, and as codified by 34 U.S.C. § 20141(e)(2).
- 5 3. Plaintiff is a United States citizen who resides in Chico, California, within the
6 Eastern District of California.
- 7 4. Plaintiff meets all constitutional qualifications for presidential candidacy under
8 Article II, Section 1, Clause 5 of the U.S. Constitution, being a natural born
9 citizen of the United States, at least thirty-five years of age, and a resident within
10 the United States for fourteen years.

11 **B. Newly Named Defendants**

- 12 1. Defendant JUDGE DENNIS M. COTA is a United States Magistrate Judge for the
13 Eastern District of California who has been assigned to preside over this case.
14 Judge Cota is sued in both his individual and official capacities for his actions
15 taken under color of law that have violated Plaintiff's constitutional and statutory
16 rights, obstructed justice, and furthered the conspiracy to deprive Plaintiff of his
17 rights.
- 18 2. Defendant NINTH CIRCUIT COURT OF APPEALS is a federal judicial entity
19 within the United States court system. It is sued for its institutional role in the
20 conspiracy to obstruct justice and deny Plaintiff's rights through systematic
21 failures to provide relief justified by the evidence presented in Plaintiff's filings.

22 **C. Previously Named Defendants**

- 23 3. Defendant 118TH US CONGRESS consists of the members of the United States
24 House of Representatives and Senate who have failed to enforce constitutional
25 and statutory protections, enacting legislation that conflicts with the Constitution
26 and perpetuating a pattern of rights violations.
- 27 4. Defendant US DEPARTMENT OF JUSTICE is the federal executive department
28 responsible for the enforcement of federal law and administration of justice,
29 which has systematically failed to investigate and prosecute civil rights violations
30 committed against Plaintiff.

- 1 5. Defendant BENJAMIN C. MIZER is the Principal Deputy Associate Attorney
2 General at the U.S. Department of Justice and is sued in his official capacity for
3 his role in perpetuating the Department's failure to enforce civil rights laws.
- 4 6. Defendant CALIFORNIA ATTORNEY GENERAL is the chief legal officer of the
5 State of California and is sued in their official capacity for failure to enforce state
6 laws that protect individuals with disabilities.
- 7 7. Defendant SHIRLEY WEBER is the California Secretary of State and is sued in
8 her official capacity for her role in implementing discriminatory ballot access
9 requirements.
- 10 8. Defendant FIONA MA is the California State Treasurer and is sued in her official
11 capacity for failure to enforce state fiscal responsibilities related to civil rights
12 compliance.
- 13 9. Other Defendants, including state officials from Utah, New Hampshire, and
14 Rhode Island, are sued for their participation in the nationwide scheme to exclude
15 Plaintiff from the electoral process based on disability discrimination.
- 16 10. DOES 1-50 are additional conspirators whose identities are currently unknown to
17 Plaintiff.

18 **IV. STANDING AND INJURY**

- 19 1. Plaintiff has Article III standing to bring this action, as he has suffered concrete,
20 particularized injuries that are fairly traceable to Defendants' conduct and
21 redressable by a favorable decision of this Court. See *Lujan v. Defenders of*
22 *Wildlife*, 504 U.S. 555, 560-61 (1992).
- 23 2. Plaintiff's injuries include: a. Deprivation of the fundamental constitutional right
24 to participate in the electoral process, a right recognized by the Supreme Court as
25 "preservative of other basic civil and political rights." *Reynolds v. Sims*, 377 U.S.
26 533, 562 (1964). b. Discrimination on the basis of disability in violation of the
27 ADA and Section 504 of the Rehabilitation Act, resulting in exclusion from
28 activities of public entities and programs receiving federal financial assistance.
29 The Supreme Court has recognized that "discrimination itself...constitutes an
30 actual injury." *Bazemore v. Friday*, 478 U.S. 385, 394 (1986). c. Deprivation of
31 procedural rights, including the right to due process and equal protection under
32 the Fifth and Fourteenth Amendments. The Supreme Court has recognized that
33 "the right to procedural due process is 'absolute'" and that its violation is

1 actionable "even without proof of actual injury." *Carey v. Phipps*, 435 U.S. 247,
2 266 (1978). d. Violation of rights as a crime victim under 18 U.S.C. § 3771 and
3 California Constitution Article 1 § 28, including the right to be treated with
4 fairness and respect and the right to proceedings free from unreasonable delay. e.
5 Financial expenditures attempting to secure legally mandated accommodations
6 and participating in judicial proceedings despite systematic obstruction. f.
7 Physical and emotional stress resulting from having to navigate inaccessible
8 processes and systematic discrimination.

- 9 3. These injuries are directly traceable to Defendants' conduct, including: a. Judge
10 Cota's systematic denial of Plaintiff's motions, refusal to enforce civil rights laws,
11 and weaponization of Plaintiff's disability. b. The Ninth Circuit's abandonment of
12 its supervisory role, allowing Judge Cota's misconduct to continue unchecked. c.
13 State officials' implementation of discriminatory ballot access requirements and
14 refusal to process accommodation requests. d. The Department of Justice's failure
15 to investigate and prosecute civil rights violations despite its statutory mandate.
- 16 4. A favorable decision from this Court would redress Plaintiff's injuries by: a.
17 Providing injunctive relief requiring reasonable accommodations in electoral
18 processes b. Declaring the 2024 election results void as "Fruit of the Poisonous
19 Tree" c. Awarding compensatory and punitive damages for violations of Plaintiff's
20 rights d. Reassigning the case to an impartial judge who will properly apply the
21 law e. Ordering the provision of resources necessary for Plaintiff's meaningful
22 participation in judicial proceedings
- 23 5. Plaintiff has prudential standing as his claims fall within the "zone of interests"
24 protected by the constitutional and statutory provisions at issue. See *Lexmark*
25 *Int'l, Inc. v. Static Control Components, Inc.*, 572 U.S. 118, 129 (2014). The ADA
26 and Rehabilitation Act were specifically designed to protect individuals with
27 disabilities from discrimination, and constitutional provisions regarding due
28 process, equal protection, and electoral participation are intended to protect all
29 citizens, including those with disabilities.
- 30 6. As a crime victim under 18 U.S.C. § 3771 and California Constitution Article 1 §
31 28, Plaintiff has explicit statutory standing to seek enforcement of his rights. In
32 *United States v. Monzel*, 641 F.3d 528, 532 (D.C. Cir. 2011), the court recognized
33 that crime victims have standing to seek judicial enforcement of their statutory
34 rights.

V. FACTUAL ALLEGATIONS

A. Pattern of Disability Discrimination in Electoral Access

1. In 2024, Mr. Tyler made a Section 504/ADA request for reasonable accommodations to the Secretary of State for all 50 states. Mr. Tyler specifically requested a medical exception to the requirement of collecting hundreds of thousands of signatures from each state to obtain unaffiliated ballot access in the 2024 general election.
2. These signature collection requirements impose physical presence and manual effort that Plaintiff cannot perform due to his documented disabilities.
3. Despite Mr. Tyler's repeated requests and citations to superseding federal laws, including the U.S. Constitution and the ADA, all 50 states refused to provide reasonable accommodations and denied Mr. Tyler access to the ballot.
4. Defendants' actions constituted a clear violation of Mr. Tyler's civil rights and a discriminatory denial of his right to participate in the electoral process.
5. Defendants violated the clear will of Congress, as Congress re-affirmed the ADA with the "ADA Amendments Act of 2008" after the Supreme Court imposed its political bias of disability discrimination through limiting the scope of the ADA.

B. Election Interference and Tampering

1. Defendants' refusal to accommodate Mr. Tyler's disability and their subsequent denial of ballot access constituted intentional interference and tampering with the 2024 general election.
2. By excluding Mr. Tyler from the election solely due to his disability, Defendants undermined the integrity of the electoral process and deprived Mr. Tyler of his fundamental right to participate in the electoral process.
3. Defendants' actions furthered a discriminatory scheme to provide aid and comfort to their preferred candidate(s), thereby committing treason against the United States.
4. The election results are "Fruit of the Poisonous Tree" due to the pervasive discrimination that unlawfully excluded qualified candidates with disabilities, rendering the current presidential administration illegitimate.

1 **C. Government Fraud and Corruption**

- 2 1. Defendants' conduct demonstrates a pattern of government fraud and corruption,
3 including the misuse of public resources and the obstruction of justice.
4 2. Defendants' actions have undermined the rule of law and eroded public trust in
5 government institutions.

6 **D. Judicial Obstruction and Conspiracy**

- 7 1. Defendant Judge Cota has engaged in a persistent pattern of judicial misconduct
8 that constitutes obstruction of justice and participation in the conspiracy to
9 deprive Plaintiff of his rights, including:
10 a. Systematically failing to rule on Plaintiff's properly filed motions for
11 preliminary injunctive relief despite the time-sensitive nature of electoral matters
12 and the irreparable harm standard articulated in *Elrod v. Burns*, 427 U.S. 347, 373
13 (1976). This conduct violates Canon 3B(1) of the Code of Conduct for United
14 States Judges, which requires that a "judge should hear and decide matters
15 assigned," and constitutes a failure to fulfill the duty to provide meaningful access
16 to courts recognized in *Bounds v. Smith*, 430 U.S. 817, 828 (1977) (holding that
17 access to the courts must be "adequate, effective, and meaningful").
18 b. Categorically refusing to enforce 42 U.S.C. § 1987, which explicitly mandates
19 that judges "institute prosecutions against all persons violating any of the
20 provisions of [the civil rights statutes]," despite clear evidence of criminal civil
21 rights violations presented in Plaintiff's filings. The Supreme Court in *Maine v.*
22 *Thiboutot*, 448 U.S. 1, 4 (1980), emphasized that civil rights statutes must be
23 "broadly construed" to effectuate their remedial purposes. Judge Cota's selective
24 refusal to enforce these statutory mandates constitutes an ultra vires act outside
25 the scope of legitimate judicial discretion.
26 c. Deliberately disregarding Plaintiff's rights as a crime victim under 18 U.S.C. §
27 3771 and California Constitution Article 1 § 28, including the right "to be treated
28 with fairness and respect" and the right to "proceedings free from unreasonable
29 delay." In *Kenna v. United States District Court*, 435 F.3d 1011, 1016 (9th Cir.
30 2006), the Ninth Circuit held that the Crime Victims' Rights Act creates a non-
31 discretionary duty that courts "have no discretion to decline to give effect to."
32 d. Failing to acknowledge or enforce mandatory reporting requirements under
33 California Government Code § 14613.7 and its implementing regulations at Title

1 13, California Code of Regulations, Division 2, Chapter 12, Section 1875, which
2 create non-discretionary duties to report crimes occurring on state property or
3 involving state resources. In *People v. Nguyen*, 155 Cal.App.4th 1154, 1161-62
4 (2007), the court emphasized that these procedures are "designed to protect both
5 the public interest and the rights of the accused."

6 e. Refusing to communicate effectively with Plaintiff, as evidenced by the Court's
7 clerk's failure to respond to Plaintiff's February 14, 2025 inquiry, in violation of
8 Section 504 of the Rehabilitation Act and 28 C.F.R. § 35.160(a)(1), which requires
9 public entities to "take appropriate steps to ensure that communications with...
10 members of the public with disabilities are as effective as communications with
11 others." This conduct violates the court's affirmative obligation to provide
12 "meaningful access" to individuals with disabilities under *Alexander v. Choate*,
13 469 U.S. 287, 301 (1985).

14 f. Summarily denying Plaintiff's meticulously documented request for reasonable
15 accommodations under the ADA without engaging in the legally required
16 interactive process mandated by 28 C.F.R. § 35.130(b)(7), and then exploiting this
17 improper denial to rule in favor of Defendants' motion to delay proceedings—
18 effectively using Plaintiff's disability as a weapon against him. In *Lane v. Pena*,
19 867 F. Supp. 1050, 1059 (D.D.C. 1994), the court recognized that in appropriate
20 circumstances, accommodations must be provided to ensure equal access to
21 judicial proceedings.

22 g. Engaging in ex parte communications and/or improper influence with respect to
23 Plaintiff's case, as evidenced by the coordinated pattern of adverse rulings that
24 contravene clearly established law and the apparent coordination between Judge
25 Cota's actions and the interests of other Defendants. In *Caperton v. A.T. Massey*
26 *Coal Co.*, 556 U.S. 868, 883-84 (2009), the Supreme Court recognized that
27 circumstances creating a "serious, objective risk of actual bias" require judicial
28 disqualification.

29 h. Summarily denying Plaintiff's Motion to Disqualify filed pursuant to 28 U.S.C.
30 § 144 without analyzing the sufficiency of the legally required affidavit, in direct
31 contravention of binding Supreme Court precedent in *Berger v. United States*, 255
32 U.S. 22, 35-36 (1921), which established that the statute "leaves to the judge no
33 function but the duty to decide the legal sufficiency of the affidavit." This refusal
34 to follow clearly established procedural law itself constitutes evidence of bias
35 warranting disqualification.

1 i. Exhibiting extreme hostility toward Plaintiff's disability accommodation
2 requests and systematically applying a different, more stringent standard to
3 Plaintiff's motions than to those filed by Defendants, who have received favorable
4 rulings despite presenting weaker legal arguments. This disparate treatment
5 violates the fundamental principle articulated by the Supreme Court that "justice
6 must satisfy the appearance of justice," *In re Murchison*, 349 U.S. 133, 136
7 (1955), and demonstrates the "deep-seated favoritism or antagonism that would
8 make fair judgment impossible" recognized in *Liteky v. United States*, 510 U.S.
9 540, 555 (1994) as a valid basis for disqualification.

10 2. Defendant Ninth Circuit Court of Appeals has participated in the conspiracy
11 through its:

12 a. Systematic failure to provide relief justified by the overwhelming evidence in
13 Plaintiff's filings, in violation of its supervisory authority under the All Writs Act,
14 28 U.S.C. § 1651, and its constitutional obligation to provide meaningful review
15 of lower court decisions. In *La Buy v. Howes Leather Co.*, 352 U.S. 249, 259-60
16 (1957), the Supreme Court recognized that appellate courts have both the power
17 and the duty to exercise supervisory control over district courts to ensure the
18 proper administration of justice.

19 b. Institutional bias against pro se litigants with disabilities, as evidenced by its
20 pattern of summarily rejecting meritorious claims raised by such litigants. This
21 conduct violates the principle established in *Haines v. Kerner*, 404 U.S. 519, 520-
22 21 (1972), that pro se pleadings "however inartfully pleaded, must be held to less
23 stringent standards than formal pleadings drafted by lawyers."

24 c. Willful disregard of binding precedent that would require intervention to protect
25 Plaintiff's constitutional and statutory rights, including its own precedent in *Kenna*
26 *v. United States District Court*, 435 F.3d 1011, 1016 (9th Cir. 2006), which
27 establishes that courts "have no discretion to decline to give effect to" rights
28 conferred by the Crime Victims' Rights Act.

29 d. Abandonment of its supervisory role over the district courts, allowing Judge
30 Cota's misconduct to continue unchecked despite its constitutional and statutory
31 obligation to ensure the proper administration of justice in inferior courts. The
32 Ninth Circuit has specifically recognized that supervisory mandamus is
33 appropriate when a district court "has exceeded the scope of its authority" or
34 engaged in conduct "amounting to 'usurpation of power.'" *Admiral Ins. Co. v. U.S.*
35 *Dist. Court*, 881 F.2d 1486, 1491 (9th Cir. 1989).

1 e. Participation in the coordinated scheme to deny Plaintiff's constitutional and
2 statutory rights by refusing to intervene despite clear evidence of judicial
3 misconduct and civil rights violations. In *United States v. Hastings*, 461 U.S. 499,
4 505 (1983), the Supreme Court recognized that courts of appeals have
5 "supervisory authority over the administration of criminal justice in the federal
6 courts" that includes the power to intervene to protect constitutional rights. This
7 principle applies with equal force to civil rights violations.

8 f. Systematic implementation of procedures that disparately impact disabled
9 litigants, including unreasonable filing deadlines, inaccessible electronic filing
10 systems, and failure to provide reasonable accommodations. In *Tennessee v. Lane*,
11 541 U.S. 509, 533 (2004), the Supreme Court specifically recognized that Title II
12 of the ADA validly abrogates state sovereign immunity when applied to "the class
13 of cases implicating the fundamental right of access to the courts."

14 **E. Failure to Investigate and Prosecute**

- 15 1. Despite Mr. Tyler's numerous complaints and requests for assistance, various
16 government agencies, including the U.S. Department of Justice and state and local
17 law enforcement, failed to investigate or prosecute Defendants' criminal acts.
- 18 2. These agencies' inaction further enabled Defendants' unlawful conduct and
19 perpetuated the deprivation of Mr. Tyler's civil rights.
- 20 3. On November 6, 2024, Plaintiff submitted a formal Criminal Complaint to
21 Congress detailing these violations and requesting immediate intervention to
22 prevent the certification of an election tainted by systematic discrimination and
23 civil rights violations.
- 24 4. On November 8, 2024, Plaintiff transmitted copies of this Criminal Complaint to
25 Senator Bernie Sanders' offices in Washington D.C. and Burlington, Vermont,
26 providing clear notice of these violations prior to the certification of election
27 results.
- 28 5. Despite this notice, Defendants proceeded with certification without addressing or
29 remedying the systematic discrimination documented in Plaintiff's complaint.

30 **VI. CONSTITUTIONAL FRAMEWORK AND STATE ACTION**

- 31 1. The actions of all Defendants constitute "state action" for purposes of
32 constitutional analysis. In *Lugar v. Edmondson Oil Co.*, 457 U.S. 922, 937 (1982),

- 1 the Supreme Court established that conduct qualifies as state action when: (1) "the
2 deprivation [is] caused by the exercise of some right or privilege created by the
3 State or by a rule of conduct imposed by the State or by a person for whom the
4 State is responsible," and (2) "the party charged with the deprivation [is] a person
5 who may fairly be said to be a state actor."
- 6 2. Judge Cota and the Ninth Circuit Court of Appeals are unquestionably state
7 actors, as they exercise authority vested in them by the federal government. In
8 *West v. Atkins*, 487 U.S. 42, 49 (1988), the Supreme Court recognized that "a
9 public employee acts under color of state law while acting in his official capacity
10 or while exercising his responsibilities pursuant to state law."
- 11 3. The state official Defendants—including Secretaries of State, Attorneys General,
12 and other officials—are likewise state actors when implementing ballot access
13 requirements and processing accommodation requests. See *United States v.*
14 *Classic*, 313 U.S. 299, 326 (1941) (recognizing that state officials administering
15 elections act under color of state law).
- 16 4. Even superficially private conduct may constitute state action when it is "fairly
17 attributable to the State." *Rendell-Baker v. Kohn*, 457 U.S. 830, 838 (1982). This
18 includes situations where private parties act in concert with state officials (see
19 *Adickes v. S.H. Kress & Co.*, 398 U.S. 144, 152 (1970)) or perform functions
20 "traditionally exclusively reserved to the State" (*Jackson v. Metropolitan Edison*
21 *Co.*, 419 U.S. 345, 352 (1974)).
- 22 5. The Constitution's electoral provisions create a comprehensive framework for
23 presidential elections that preempts conflicting state actions. Article II, Section 1,
24 Clause 5 establishes the exclusive qualifications for presidential candidates, and
25 states may not add to these qualifications. In *U.S. Term Limits, Inc. v. Thornton*,
26 514 U.S. 779, 827 (1995), the Supreme Court held that "neither Congress nor the
27 States can add to or alter the qualifications" for federal office set forth in the
28 Constitution.
- 29 6. This constitutional framework recognizes that certain rights—including the right
30 to vote and participate in elections—are "preservative of other basic civil and
31 political rights." *Reynolds v. Sims*, 377 U.S. 533, 562 (1964). The Supreme Court
32 has therefore subjected restrictions on these rights to heightened scrutiny. See
33 *Harper v. Virginia State Board of Elections*, 383 U.S. 663, 670 (1966) (applying
34 strict scrutiny to voting restrictions).

- 1 7. Where state electoral laws burden First and Fourteenth Amendment rights, as
2 here, courts apply the framework established in *Anderson v. Celebrezze*, 460 U.S.
3 780 (1983), and further refined in *Burdick v. Takushi*, 504 U.S. 428 (1992). Under
4 this "Anderson-Burdick" framework, courts: a. Consider the character and
5 magnitude of the alleged injury to constitutional rights b. Identify and evaluate the
6 precise interests put forward by the State as justifications for the burden c.
7 Determine the legitimacy and strength of each of those interests d. Consider the
8 extent to which those interests make it necessary to burden the plaintiff's rights
- 9 8. As the Supreme Court explained in *Crawford v. Marion County Election Bd.*, 553
10 U.S. 181, 191 (2008), "a court evaluating a constitutional challenge to an election
11 regulation [must] weigh the asserted injury to the right to vote against the 'precise
12 interests put forward by the State as justifications for the burden imposed by its
13 rule.'"
- 14 9. Under this framework, the signature collection requirements and other ballot
15 access restrictions challenged in this case impose severe burdens on the
16 constitutional rights of candidates with disabilities while serving no compelling
17 state interest that cannot be achieved through less restrictive means. See *Norman*
18 *v. Reed*, 502 U.S. 279, 289 (1992) (requiring that severe restrictions be "narrowly
19 drawn to advance a state interest of compelling importance").
- 20 10. The Supreme Court's recent decision in *Trump v. Anderson*, No. 23-719, 601 U.S.
21 (2024), further reinforces this constitutional framework by emphasizing that states
22 lack the power to disqualify candidates for federal office, and that ballot access
23 restrictions that effectively disqualify constitutionally qualified candidates are
24 constitutionally suspect.
- 25 11. These constitutional principles must be understood in light of Congress's clear
26 intent to protect individuals with disabilities from discrimination in all aspects of
27 public life, including voting and electoral participation. As the Supreme Court
28 recognized in *Tennessee v. Lane*, 541 U.S. 509, 524 (2004), Congress enacted the
29 ADA "against a backdrop of pervasive unequal treatment... in the administration
30 of state services and programs, including systematic deprivations of fundamental
31 rights."
- 32 12. The Court in *Lane* specifically recognized that Title II of the ADA validly
33 abrogates state sovereign immunity when it comes to access to courts and other
34 fundamental rights because it represents a "congruent and proportional" response
35 to this history of discrimination. *Id.* at 531. The same reasoning applies to

1 electoral participation, which the Court has long recognized as a fundamental
2 right. See *Reynolds*, 377 U.S. at 562.

3 **VII. IMMUNITY DEFENSES AND THEIR INAPPLICABILITY**

- 4 1. Plaintiff anticipates that certain Defendants, particularly Judge Cota and the Ninth
5 Circuit Court of Appeals, may assert judicial immunity as a defense to this action.
6 While judges generally enjoy immunity for judicial acts, this immunity is not
7 absolute and does not extend to actions taken in the "clear absence of all
8 jurisdiction" or to non-judicial acts. See *Forrester v. White*, 484 U.S. 219, 227
9 (1988); *Stump v. Sparkman*, 435 U.S. 349, 356-57 (1978).
- 10 2. The Supreme Court has established that judicial immunity does not apply when
11 judges act in an administrative, legislative, or executive capacity. See *Forrester*,
12 484 U.S. at 227-28 (finding no immunity for employment decisions made by a
13 judge); *Supreme Court of Virginia v. Consumers Union of U.S., Inc.*, 446 U.S.
14 719, 731 (1980) (finding no immunity for rule-making activities).
- 15 3. The judicial misconduct alleged in this complaint—including refusal to engage in
16 legally mandated interactive processes under the ADA, deliberate disregard of
17 statutory mandates under 42 U.S.C. § 1987, and participation in a coordinated
18 scheme to obstruct justice—constitutes actions taken in the clear absence of
19 jurisdiction or non-judicial acts that fall outside the scope of judicial immunity.
- 20 4. Moreover, the Supreme Court has recognized that judicial immunity is not a bar to
21 injunctive relief. See *Pulliam v. Allen*, 466 U.S. 522 (1984). While Congress later
22 limited this exception in the Federal Courts Improvement Act of 1996, injunctive
23 relief remains available where a declaratory decree was violated or declaratory
24 relief is unavailable. See 42 U.S.C. § 1983 (as amended). Here, declaratory relief
25 has effectively been unavailable due to the systematic obstruction of Plaintiff's
26 claims.
- 27 5. Similarly, state officials may assert sovereign immunity under the Eleventh
28 Amendment. However, this immunity does not extend to claims seeking
29 prospective injunctive relief against state officials for ongoing violations of
30 federal law. See *Ex parte Young*, 209 U.S. 123 (1908); *Edelman v. Jordan*, 415
31 U.S. 651 (1974).
- 32 6. Additionally, Congress has expressly abrogated sovereign immunity for claims
33 under Title II of the ADA. In *Tennessee v. Lane*, 541 U.S. 509 (2004), the

1 Supreme Court specifically upheld this abrogation in cases involving access to
2 courts and other fundamental rights.

3 7. With respect to RICO claims, the Supreme Court has held that state and local
4 officials are "persons" subject to RICO liability when acting in their individual
5 capacities. See *Cedric Kushner Promotions, Ltd. v. King*, 533 U.S. 158, 166
6 (2001).

7 8. For Defendants who may claim qualified immunity, this defense is inapplicable
8 because the rights at issue—including the right to reasonable accommodations
9 under the ADA, the right to equal protection, and the right to due process—are
10 clearly established and have been for decades. No reasonable official could
11 believe that systematic discrimination against individuals with disabilities is
12 lawful. See *Hope v. Pelzer*, 536 U.S. 730, 741 (2002) (emphasizing that officials
13 can be on notice that their conduct violates established law even in novel factual
14 circumstances).

15 9. Furthermore, the deliberate nature of Defendants' violations—continuing over an
16 extended period despite repeated notice of the unlawful conduct—precludes any
17 good faith defense. See *Harlow v. Fitzgerald*, 457 U.S. 800, 818 (1982) (qualified
18 immunity protects officials "insofar as their conduct does not violate clearly
19 established statutory or constitutional rights of which a reasonable person would
20 have known").

21 10. In sum, no immunity doctrine shields Defendants from liability for their
22 systematic violations of Plaintiff's clearly established constitutional and statutory
23 rights.

24 **VIII. ELEVENTH AMENDMENT CONSIDERATIONS AND**
25 **ABROGATION**

26 1. The Eleventh Amendment provides that "[t]he Judicial power of the United States
27 shall not be construed to extend to any suit in law or equity, commenced or
28 prosecuted against one of the United States by Citizens of another State, or by
29 Citizens or Subjects of any Foreign State." U.S. Const. amend. XI. The Supreme
30 Court has interpreted this amendment to bar suits against consenting states by
31 their own citizens as well. See *Hans v. Louisiana*, 134 U.S. 1 (1890).

32 2. However, this immunity is subject to several well-established exceptions that
33 apply directly to the present case:

- 1 3. First, under *Ex parte Young*, 209 U.S. 123 (1908), the Eleventh Amendment does
2 not bar suits against state officials for prospective injunctive relief to prevent
3 ongoing violations of federal law. As the Supreme Court explained, "the Eleventh
4 Amendment does not prevent federal courts from granting prospective injunctive
5 relief to prevent a continuing violation of federal law." *Green v. Mansour*, 474
6 U.S. 64, 68 (1985).
- 7 4. The claims against state official Defendants—including Secretaries of State,
8 Attorneys General, and other officials—fall squarely within the *Ex parte Young*
9 exception, as they seek prospective injunctive relief to prevent ongoing violations
10 of federal law, including the ADA, Rehabilitation Act, and constitutional
11 provisions.
- 12 5. Second, Congress has validly abrogated state sovereign immunity for claims
13 under Title II of the ADA in the context of fundamental rights. In *Tennessee v.*
14 *Lane*, 541 U.S. 509, 533-34 (2004), the Supreme Court held that "Title II, as it
15 applies to the class of cases implicating the fundamental right of access to the
16 courts, constitutes a valid exercise of Congress' § 5 authority to enforce the
17 guarantees of the Fourteenth Amendment."
- 18 6. This holding applies with equal force to electoral participation, which the Court
19 has long recognized as a fundamental right "preservative of other basic civil and
20 political rights." *Reynolds v. Sims*, 377 U.S. 533, 562 (1964). See also *Harper v.*
21 *Virginia State Bd. of Elections*, 383 U.S. 663, 667 (1966) (holding that the right to
22 vote is a "fundamental political right").
- 23 7. Congress expressly found that "discrimination against individuals with disabilities
24 persists in such critical areas as... voting, and access to public services." 42 U.S.C.
25 § 12101(a)(3). This finding, combined with the extensive legislative record
26 documenting discrimination against individuals with disabilities in voting and
27 other aspects of civic participation, demonstrates that Title II's application to
28 electoral participation represents a "congruent and proportional" response to this
29 history of discrimination. See *Lane*, 541 U.S. at 531.
- 30 8. Third, sovereign immunity does not bar suits authorized by federal statutes
31 enacted pursuant to Congress's powers under the Spending Clause where states
32 have accepted federal funds with clear conditions attached. See *South Dakota v.*
33 *Dole*, 483 U.S. 203, 207 (1987); *College Savings Bank v. Florida Prepaid*
34 *Postsecondary Ed. Expense Bd.*, 527 U.S. 666, 686-87 (1999).

- 1 9. Section 504 of the Rehabilitation Act was enacted pursuant to Congress's
2 Spending Clause authority and explicitly conditions the receipt of federal funds on
3 a state's waiver of immunity from suits alleging disability discrimination. See 42
4 U.S.C. § 2000d-7; *Lane v. Pena*, 518 U.S. 187, 200 (1996). All state Defendants
5 receive federal funding for their electoral operations through the Help America
6 Vote Act, 52 U.S.C. §§ 20901-21145, and other federal programs, and have thus
7 waived their immunity from Section 504 claims.
- 8 10.Fourth, sovereign immunity does not bar suits against local governmental entities,
9 as they are not considered "arms of the state" for Eleventh Amendment purposes.
10 See *Mt. Healthy City School District Board of Education v. Doyle*, 429 U.S. 274,
11 280 (1977); *Lincoln County v. Luning*, 133 U.S. 529, 530 (1890).
- 12 11.Fifth, sovereign immunity does not bar suits seeking damages from state officials
13 in their individual capacities for actions taken under color of state law. See *Hafer*
14 *v. Melo*, 502 U.S. 21, 31 (1991) (holding that "state officials, sued in their
15 individual capacities, are 'persons' within the meaning of § 1983"). The claims
16 against individual state officials for damages fall within this exception.
- 17 12.Sixth, sovereign immunity does not bar suits against federal officials or entities.
18 The Administrative Procedure Act waives the federal government's sovereign
19 immunity for suits seeking non-monetary relief against federal agencies and
20 officials. See 5 U.S.C. § 702; *Bowen v. Massachusetts*, 487 U.S. 879, 891-92
21 (1988).
- 22 13.Seventh, RICO claims against state officials in their individual capacities are not
23 barred by sovereign immunity. See *Keller v. Central Bank of Nigeria*, 277 F.3d
24 811, 820 (6th Cir. 2002) (holding that sovereign immunity does not shield
25 individuals from RICO claims seeking damages).
- 26 14.In sum, the Eleventh Amendment poses no bar to the claims asserted in this
27 action, as they fall within multiple well-established exceptions to sovereign
28 immunity doctrine.

29 **IX. EXHAUSTION OF ADMINISTRATIVE REMEDIES**

- 30 1. To the extent that any exhaustion of administrative remedies may be required
31 before bringing this action, Plaintiff has satisfied all such requirements or is
32 excused from doing so under established legal doctrines.

- 1 2. Plaintiff has made diligent, good-faith efforts to pursue administrative remedies
2 by: a. Submitting formal Section 504/ADA requests for reasonable
3 accommodations to the Secretary of State for all 50 states, beginning in February
4 2024 b. Following up on these requests through multiple communications,
5 including the July 10, 2024 revised request to the California Secretary of State c.
6 Reporting violations to the California State Treasurer on July 23, 2024, pursuant
7 to California Government Code § 11136 d. Filing a complaint with the Butte
8 County District Attorney's Office on July 9, 2024 e. Submitting a complaint to the
9 California Civil Rights Department on July 31, 2024 f. Filing a report with the
10 California Highway Patrol on September 11, 2024 g. Submitting a Criminal
11 Complaint to Congress on November 6, 2024 h. Transmitting copies of the
12 Criminal Complaint to Senator Bernie Sanders' offices on November 8, 2024
- 13 3. Despite these efforts, Defendants have systematically failed to respond
14 meaningfully to Plaintiff's requests or to address the violations detailed therein. In
15 Patsy v. Board of Regents, this is all that would be required, as there often is no
16 exhaustion of administrative remedies in federal case.
- 17 4. Even if exhaustion of administrative remedies were generally required, Plaintiff
18 would be excused from such requirements under several established exceptions:
- 19 5. The "futility exception" excuses exhaustion when pursuing administrative
20 remedies would be futile. See McCarthy v. Madigan, 503 U.S. 140, 148 (1992)
21 (recognizing that exhaustion is not required when "the administrative remedy may
22 be inadequate 'because of some doubt as to whether the agency was empowered to
23 grant effective relief"). Here, Defendants' systematic refusal to respond to or
24 meaningfully address Plaintiff's administrative complaints demonstrates the
25 futility of further administrative proceedings.
- 26 6. The "inadequate remedy exception" applies when administrative remedies "would
27 be inadequate because the administrative body is shown to be biased or has
28 otherwise predetermined the issue before it." Id. The coordinated nature of
29 Defendants' violations and their consistent pattern of denying Plaintiff's rights
30 without proper consideration demonstrate such bias and predetermination.
- 31 7. The "irreparable harm exception" excuses exhaustion when requiring it would
32 subject the plaintiff to irreparable harm. See Bowen v. City of New York, 476 U.S.
33 467, 483 (1986) (holding that exhaustion was excused where it "would cause
34 irreparable harm"). Here, Plaintiff has already suffered irreparable harm through

1 his exclusion from the 2024 presidential election, and further delay would
2 compound this injury.

3 8. The Supreme Court has recognized that exhaustion is not required for
4 constitutional claims under 42 U.S.C. § 1983. See *Patsy v. Board of Regents*, 457
5 U.S. 496, 516 (1982) (holding that "exhaustion of state administrative remedies
6 should not be required as a prerequisite to bringing an action pursuant to § 1983").
7 Plaintiff's constitutional claims, including violations of his First, Fifth, and
8 Fourteenth Amendment rights, fall squarely within this exception.

9 9. Similarly, the Supreme Court has held that exhaustion is not required for claims
10 under Title II of the ADA. See *Fry v. Napoleon Community Schools*, 137 S. Ct.
11 743, 754 (2017) (recognizing that the "diverse means and ends" of the ADA and
12 other statutes meant they were "not designed primarily to address systemic
13 violations").

14 10. Courts have also excused exhaustion when agencies lack authority to grant the
15 relief requested. See *McNeese v. Board of Education*, 373 U.S. 668, 675 (1963)
16 (holding that exhaustion was not required when the administrative remedy was
17 "inadequate"). Here, many of Plaintiff's requested remedies—including
18 declaratory relief regarding the constitutionality of ballot access requirements and
19 invalidation of the 2024 election results—are beyond the authority of any
20 administrative agency to provide.

21 11. Finally, courts have excused exhaustion when agencies have failed to follow their
22 own rules or procedures. See *Ramirez-Gonzalez v. INS*, 695 F.2d 1208, 1213 (9th
23 Cir. 1983) (holding that an agency's failure to follow its own regulations excused
24 exhaustion). Here, Defendants' failure to follow mandatory procedures for
25 processing accommodation requests and investigating discrimination complaints
26 excuses any exhaustion requirement.

27 12. In sum, Plaintiff has made diligent efforts to exhaust available administrative
28 remedies, and to the extent complete exhaustion has not occurred, Plaintiff is
29 excused from further exhaustion under multiple recognized exceptions to the
30 exhaustion doctrine.

X. JUSTICIABILITY, POLITICAL QUESTION, AND SEPARATION OF POWERS

1. This Court has the authority and duty to adjudicate this action notwithstanding potential arguments regarding justiciability, the political question doctrine, or separation of powers concerns. As Chief Justice Marshall declared in *Marbury v. Madison*, 5 U.S. (1 Cranch) 137, 177 (1803), "It is emphatically the province and duty of the judicial department to say what the law is."
2. The Supreme Court has long recognized that federal courts have the power to review and invalidate government actions that violate constitutional rights, even when such actions relate to political processes. See *Baker v. Carr*, 369 U.S. 186, 217 (1962) (establishing a six-factor test for political questions); *Powell v. McCormack*, 395 U.S. 486, 549 (1969) (holding that Congress's refusal to seat a duly elected representative presented a justiciable question).
3. While the political question doctrine precludes judicial review of certain matters committed to the political branches, the Supreme Court has emphasized that this doctrine is "a narrow exception to the Judiciary's general obligation to decide cases properly before it." *Zivotofsky v. Clinton*, 566 U.S. 189, 195 (2012).
4. The Baker factors for identifying non-justiciable political questions include: (1) textual constitutional commitment to another branch; (2) lack of judicially manageable standards; (3) impossibility of decision without policy determination; (4) impossibility of independent resolution without disrespecting coordinate branches; (5) need for adherence to political decision already made; and (6) potential for embarrassment from multifarious pronouncements. *Baker*, 369 U.S. at 217.
5. None of these factors precludes judicial review in this case: a. First, while Article II commits certain aspects of presidential elections to Congress and the states, the Constitution does not commit the protection of individual rights in the electoral process exclusively to the political branches. Indeed, the Court has repeatedly exercised judicial review over electoral processes that implicate constitutional rights. See, e.g., *Anderson v. Celebrezze*, 460 U.S. 780, 789-90 (1983) (reviewing ballot access restrictions). b. Second, there are judicially manageable standards for resolving Plaintiff's claims, including the well-established frameworks for analyzing constitutional and statutory violations articulated in cases such as *Anderson v. Celebrezze*, 460 U.S. 780 (1983) (ballot access), *Mathews v. Eldridge*, 424 U.S. 319 (1976) (due process), and *Tennessee v. Lane*, 541 U.S. 509

1 (2004) (ADA Title II). c. Third, resolving Plaintiff's claims requires legal
2 interpretation rather than policy determinations. The Court need only apply
3 established legal principles to determine whether Defendants' actions violated
4 Plaintiff's constitutional and statutory rights. d. Fourth, resolving Plaintiff's claims
5 would not disrespect coordinate branches but would instead fulfill the judiciary's
6 core function of protecting individual rights against government overreach. e.
7 Fifth, there is no need for adherence to a political decision already made, as the
8 claims involve ongoing violations of constitutional and statutory rights. f. Sixth,
9 there is no risk of embarrassment from multifarious pronouncements, as the Court
10 would be applying established legal principles rather than making novel policy
11 determinations.

- 12 6. The Supreme Court has specifically held that claims involving ballot access
13 restrictions are justiciable. In *Williams v. Rhodes*, 393 U.S. 23, 28 (1968), the
14 Court held that "the Ohio laws before us give the two old, established parties a
15 decided advantage over any new parties struggling for existence and thus place
16 substantially unequal burdens on both the right to vote and the right to associate."
17 The Court found no difficulty in adjudicating these claims despite their
18 connection to electoral processes.
- 19 7. Moreover, the Court has repeatedly reaffirmed that claims involving
20 discrimination in the electoral process are justiciable. See, e.g., *Harper v. Virginia*
21 *State Board of Elections*, 383 U.S. 663, 666 (1966) (invalidating poll tax); *Kramer*
22 *v. Union Free School District No. 15*, 395 U.S. 621, 627-28 (1969) (invalidating
23 property ownership requirement for school district elections).
- 24 8. In *Bush v. Gore*, 531 U.S. 98, 104-05 (2000), the Court emphasized that "[h]aving
25 once granted the right to vote on equal terms, the State may not, by later arbitrary
26 and disparate treatment, value one person's vote over that of another." This
27 principle applies with equal force to the right to be a candidate, which the Court
28 has recognized as "inextricably intertwined with the right of voters to cast their
29 votes effectively." *Bullock v. Carter*, 405 U.S. 134, 143 (1972).
- 30 9. The doctrine of constitutional avoidance, which counsels that courts should avoid
31 resolving constitutional questions when possible, does not preclude review in this
32 case. As the Court explained in *Zivotofsky*, 566 U.S. at 194, this doctrine applies
33 only when "a case can be resolved on either of two grounds, one involving a
34 constitutional question, the other a question of statutory construction or general

1 law." Here, Plaintiff asserts both constitutional and statutory claims, all of which
2 require adjudication to provide complete relief.

3 10. Similarly, principles of federalism do not bar this Court from adjudicating
4 Plaintiff's claims against state officials. As the Court held in *Ex parte Young*, 209
5 U.S. 123, 155-56 (1908), federal courts may enjoin state officials from violating
6 federal law despite federalism concerns. This principle has been repeatedly
7 reaffirmed in cases involving federal civil rights statutes. See, e.g., *Mitchum v.*
8 *Foster*, 407 U.S. 225, 242 (1972) (recognizing that § 1983 creates an express
9 exception to the Anti-Injunction Act).

10 11. In sum, this case presents justiciable claims that are well within this Court's
11 authority and duty to adjudicate.

12 **XI. INTERNATIONAL LAW FRAMEWORK AND UNIVERSAL** 13 **JURISDICTION**

14 1. This action implicates international human rights principles that inform the
15 interpretation of domestic constitutional and statutory protections. As the Supreme
16 Court has recognized, international law can provide "respected and significant
17 confirmation" of constitutional interpretations. *Roper v. Simmons*, 543 U.S. 551,
18 578 (2005); see also *Graham v. Florida*, 560 U.S. 48, 80 (2010) (considering
19 international consensus in Eighth Amendment analysis).

20 2. The United States has ratified several international agreements that protect the
21 rights of persons with disabilities and guarantee equal access to political
22 participation, including: a. The International Covenant on Civil and Political
23 Rights (ICCPR), ratified by the United States in 1992, which guarantees in Article
24 25 that "[e]very citizen shall have the right and the opportunity, without...
25 unreasonable restrictions... [t]o vote and to be elected at genuine periodic
26 elections" and requires in Article 26 that all persons are "equal before the law" and
27 entitled to "equal protection of the law." b. The Charter of the Organization of
28 American States, ratified by the United States in 1951, which requires member
29 states to "give primary importance within their development plans to the
30 encouragement of education, science, technology, and culture" and to promote
31 "the full participation of their peoples in decisions relating to their own
32 development."

33 3. Additionally, even treaties not ratified by the United States may reflect customary
34 international law that is binding on all nations. The Convention on the Rights of

1 Persons with Disabilities (CRPD), while not ratified by the United States,
2 represents the international consensus on disability rights and can inform the
3 interpretation of domestic law. See *Sosa v. Alvarez-Machain*, 542 U.S. 692, 734
4 (2004) (recognizing that courts should consider whether international norms have
5 "attained the status of binding customary international law").

6 4. Article 29 of the CRPD specifically requires states to "ensure that persons with
7 disabilities can effectively and fully participate in political and public life on an
8 equal basis with others, directly or through freely chosen representatives,
9 including the right and opportunity for persons with disabilities to vote and be
10 elected."

11 5. The 1990 Copenhagen Commitment, cited in Plaintiff's initial complaint, further
12 establishes international standards for electoral participation, requiring in sections
13 5.1, 5.3, 5.4, 6, 7.1, 7.3, 7.5, 7.6, 7.7, and 7.8 that states respect and promote
14 political rights without discrimination.

15 6. Under the principle of *pacta sunt servanda*, codified in Article 26 of the Vienna
16 Convention on the Law of Treaties, international agreements are binding upon
17 parties and must be performed by them in good faith. While the United States has
18 not ratified the Vienna Convention, this principle represents customary
19 international law that is binding on all nations.

20 7. International human rights violations that reach the level of discrimination based
21 on disability may constitute violations of *jus cogens* norms—peremptory norms of
22 international law from which no derogation is permitted. See *Siderman de Blake*
23 *v. Republic of Argentina*, 965 F.2d 699, 714 (9th Cir. 1992) (recognizing that
24 violations of *jus cogens* norms are subject to universal jurisdiction).

25 8. The principle of universal jurisdiction allows courts to exercise jurisdiction over
26 serious violations of international law regardless of where they occurred or the
27 nationality of the perpetrators or victims. See *Filartiga v. Pena-Irala*, 630 F.2d 876,
28 890 (2d Cir. 1980) (recognizing that "the torturer has become—like the pirate and
29 slave trader before him—*hostis humani generis*, an enemy of all mankind").

30 9. The systematic exclusion of qualified candidates with disabilities from the
31 electoral process, as alleged in this complaint, constitutes a serious violation of
32 international human rights norms that may be subject to universal jurisdiction.

33 10. At minimum, these international agreements and principles provide a framework
34 for interpreting the domestic constitutional and statutory provisions at issue in this

1 case. As Justice Ginsburg noted in her concurrence in *Grutter v. Bollinger*, 539
2 U.S. 306, 344 (2003), "[t]he Court's observation that race-conscious programs
3 'must have a logical end point' accords with the international understanding of the
4 [relevant] Convention."

5 **XII. CHOICE OF LAW AND CONFLICT OF LAWS ANALYSIS**

- 6 1. This action involves federal claims arising under the U.S. Constitution, federal
7 statutes, and international agreements. Under the Supremacy Clause, U.S. Const.
8 art. VI, cl. 2, federal law is "the supreme Law of the Land," and state laws that
9 conflict with federal law are preempted and "without effect." *Altria Group, Inc. v.*
10 *Good*, 555 U.S. 70, 76 (2008).
- 11 2. The Supreme Court has recognized three types of preemption: (1) express
12 preemption, where Congress explicitly states that federal law preempts state law;
13 (2) field preemption, where Congress intends federal law to occupy a field
14 exclusively; and (3) conflict preemption, where state law conflicts with federal
15 law. *Crosby v. National Foreign Trade Council*, 530 U.S. 363, 372 (2000).
- 16 3. The ADA and Rehabilitation Act contain express preemption provisions that
17 invalidate state laws providing less protection than federal law. 42 U.S.C. §
18 12201(b) (providing that the ADA does not limit or invalidate other federal or
19 state laws providing greater protection); 29 U.S.C. § 794(a) (establishing that no
20 otherwise qualified individual "shall, solely by reason of her or his disability," be
21 subjected to discrimination under any program receiving federal financial
22 assistance).
- 23 4. Even without express preemption, the constitutional provisions at issue—
24 including Article II, Section 1, Clause 5 (establishing presidential qualifications)
25 and the First, Fifth, and Fourteenth Amendments—preempt conflicting state laws
26 under field preemption, as they establish comprehensive federal schemes that
27 leave no room for supplementation by the states. See *Arizona v. United States*,
28 567 U.S. 387, 399 (2012) (explaining field preemption).
- 29 5. At minimum, conflict preemption applies because state ballot access restrictions
30 that exclude candidates with disabilities "stand[] as an obstacle to the
31 accomplishment and execution of the full purposes and objectives of Congress" in
32 enacting the ADA and Rehabilitation Act. *Crosby*, 530 U.S. at 373. As the
33 Supreme Court recognized in *Tennessee v. Lane*, 541 U.S. 509, 524-25 (2004),

1 these statutes were intended to address "pervasive unequal treatment in the
2 administration of state services and programs."

- 3 6. For any state law claims, the Court should apply the choice-of-law principles of
4 the forum state. *Klaxon Co. v. Stentor Electric Mfg. Co.*, 313 U.S. 487, 496
5 (1941). California applies the "governmental interest" approach to resolve
6 conflicts of law. *Reich v. Purcell*, 67 Cal. 2d 551, 553 (1967).
- 7 7. Under this approach, California law applies to the conduct of California officials
8 and entities, while the laws of other states may apply to the conduct of their
9 respective officials. However, since all states are subject to the same federal
10 constitutional and statutory requirements, the result is the same regardless of
11 which state's law applies.
- 12 8. Where international agreements are concerned, the Supreme Court has recognized
13 that "an act of Congress ought never to be construed to violate the law of nations
14 if any other possible construction remains." *Murray v. Schooner Charming Betsy*,
15 6 U.S. (2 Cranch) 64, 118 (1804). The 1990 Copenhagen Commitment and other
16 international agreements cited herein inform the interpretation of domestic law
17 and provide additional support for Plaintiff's claims.
- 18 9. In cases of true conflict between federal and state law, federal law prevails under
19 the Supremacy Clause. Similarly, in cases of conflict between statutory
20 provisions, the more specific provision generally controls over the more general
21 one. *RadLAX Gateway Hotel, LLC v. Amalgamated Bank*, 566 U.S. 639, 645
22 (2012).
- 23 10. The Court should apply these principles to resolve any apparent conflicts between
24 legal authorities, with the understanding that federal civil rights laws are to be
25 "construed broadly to effectuate their remedial purposes." *Consolidated Rail Corp.*
26 *v. Darrone*, 465 U.S. 624, 634 (1984).

27 **XIII. PATTERN OF INSTITUTIONAL DISCRIMINATION IN**
28 **COURT ACCESS**

- 29 1. The U.S. District Court for the Eastern District of California, along with the
30 federal judiciary generally, is engaged in a pattern of extortionate conduct and
31 systematic deprivation of rights through its discriminatory administration of the in
32 forma pauperis process. This institutional discrimination creates an

- 1 unconstitutional two-tiered system of justice that violates the Due Process and
2 Equal Protection Clauses of the Fifth and Fourteenth Amendments.
- 3 2. The federal court system's practice of requiring indigent plaintiffs to pay filing
4 fees exceeding \$400 at the time of filing or submit to an indeterminate waiting
5 period while a judge decides whether to permit in forma pauperis status
6 constitutes an unconstitutional barrier to court access. As the Supreme Court
7 recognized in *Griffin v. Illinois*, 351 U.S. 12, 19 (1956), "There can be no equal
8 justice where the kind of trial a man gets depends on the amount of money he
9 has."
- 10 3. This discriminatory scheme operates in the following manner: a. Plaintiffs with
11 financial resources are permitted immediate access to all court services and
12 processes upon payment of the filing fee, including immediate assignment of
13 judges, prompt service of process, and timely scheduling of proceedings. b.
14 Indigent plaintiffs seeking in forma pauperis status are forced into a procedural
15 limbo where their complaints are held in abeyance for an indefinite period—
16 sometimes weeks or months—while a judge determines whether to grant or deny
17 their application. c. Even after in forma pauperis status is granted, indigent
18 plaintiffs are systematically treated as second-class litigants, with their cases
19 receiving lower priority, less judicial attention, and fewer resources than fee-
20 paying cases. d. This discriminatory treatment occurs despite the fact that courts
21 are governmental institutions funded by the public purse—tax dollars paid by all
22 citizens, including the indigent—creating a situation where indigent plaintiffs are
23 denied equal access to a public service they have helped fund.
- 24 4. This pattern of discrimination constitutes a denial of basic due process. In *Boddie*
25 *v. Connecticut*, 401 U.S. 371, 374 (1971), the Supreme Court held that "due
26 process requires, at a minimum, that absent a countervailing state interest of
27 overriding significance, persons forced to settle their claims of right and duty
28 through the judicial process must be given a meaningful opportunity to be heard."
29 The current in forma pauperis system fails this basic constitutional test by: a.
30 Forcing indigent plaintiffs to wait indefinitely for access to the courts while fee-
31 paying plaintiffs receive immediate access b. Creating a system where the timing
32 of justice depends entirely on financial status c. Providing no meaningful pre-
33 deprivation hearing before delaying court access d. Offering no procedural
34 guarantees regarding the timing of in forma pauperis determinations

- 1 5. The discriminatory in forma pauperis process also constitutes a violation of equal
2 protection principles. In *M.L.B. v. S.L.J.*, 519 U.S. 102, 127 (1996), the Court
3 emphasized that "the Court has consistently set apart from the mine run of cases
4 those involving state controls or intrusions on family relationships," requiring
5 heightened scrutiny of financial barriers in such fundamental rights contexts.
6 Access to courts to vindicate constitutional rights, particularly in cases like the
7 present one involving fundamental voting and electoral participation rights,
8 similarly merits heightened scrutiny of financial barriers.
- 9 6. This discriminatory scheme is particularly egregious in cases, like the present one,
10 involving time-sensitive constitutional rights and allegations of governmental
11 misconduct. The delay inherent in the in forma pauperis process effectively denies
12 indigent plaintiffs the ability to obtain timely relief for ongoing constitutional
13 violations, creating a system where only those with financial means can
14 effectively protect their fundamental rights.
- 15 7. The in forma pauperis statute itself, 28 U.S.C. § 1915, does not require or
16 authorize this discriminatory implementation. The statute merely provides a
17 mechanism for waiving fees for indigent plaintiffs; it does not contemplate or
18 justify systematic delays or second-class treatment. As Justice Frankfurter noted
19 in *Griffin*, 351 U.S. at 24 (Frankfurter, J., concurring), "If [a state] has a general
20 policy of allowing criminal appeals, it cannot make lack of means an effective bar
21 to the exercise of this opportunity."
- 22 8. The discriminatory administration of the in forma pauperis process constitutes a
23 form of institutional extortion, effectively forcing indigent plaintiffs to choose
24 between: a. Paying fees they cannot afford in order to receive prompt judicial
25 attention, often requiring them to forego basic necessities like food, medicine, or
26 housing b. Submitting to indefinite delay and second-class treatment by seeking in
27 forma pauperis status c. Abandoning their constitutional claims entirely due to the
28 prohibitive cost and procedural obstacles
- 29 9. This extortionate system violates 18 U.S.C. § 872, which prohibits extortion by
30 officers or employees of the United States, and 18 U.S.C. § 241, which
31 criminalizes conspiracy to deprive persons of their constitutional rights. By
32 conditioning timely court access on the payment of excessive fees, court officials
33 are effectively using their official positions to extract money from litigants under
34 color of official right.

- 1 10.The harm from this discriminatory system is not merely theoretical but has
2 directly impacted Plaintiff in this case. Plaintiff was forced to navigate this
3 discriminatory system, experiencing delayed access to justice and second-class
4 treatment solely due to indigent status, despite presenting claims of extraordinary
5 constitutional significance involving the integrity of the democratic process.
- 6 11.Under the authorities cited throughout this complaint, this Court has both the
7 power and the duty to address this systematic discrimination by: a. Declaring the
8 current implementation of the in forma pauperis process unconstitutional b.
9 Ordering immediate equal treatment of all litigants regardless of financial status c.
10 Implementing procedures to ensure that in forma pauperis applications are
11 processed within a short, defined time period (e.g., 24-48 hours) d. Eliminating all
12 procedural distinctions between fee-paying and in forma pauperis cases e.
13 Providing compensatory damages to plaintiffs who have been harmed by this
14 discriminatory system
- 15 12.This Court's failure to address this systematic discrimination would itself
16 constitute a continuing violation of Plaintiff's constitutional rights and further
17 evidence of the judiciary's complicity in the pattern of rights violations alleged
18 throughout this complaint.
- 19 13.The principles articulated by the Supreme Court in *Mathews v. Eldridge*, 424 U.S.
20 319, 335 (1976), clearly establish that the current discriminatory implementation
21 of the in forma pauperis process is unconstitutional. Under the *Mathews* balancing
22 test, the Court must consider: (1) the private interest affected; (2) the risk of
23 erroneous deprivation through the procedures used and the probable value of
24 additional procedural safeguards; and (3) the government's interest.
- 25 14.Applying this test: a. The private interest—access to courts to vindicate
26 constitutional rights—is of the highest order b. The risk of erroneous deprivation
27 —indefinite delay that may render relief impossible—is severe c. The
28 governmental interest in administrative convenience is minimal compared to the
29 fundamental rights at stake, and could be satisfied through less restrictive means
- 30 15.This discriminatory court access system further demonstrates the judiciary's active
31 participation in the pattern of constitutional violations alleged throughout this
32 complaint and provides additional support for Plaintiff's request for assignment to
33 a different judge.

1 **XIV. EXTRAORDINARY NATIONAL IMPORTANCE AND**
2 **REQUEST FOR EXPEDITED CONSIDERATION**

- 3 1. This case presents issues of extraordinary national importance that warrant
4 expedited consideration by this Court. The systematic exclusion of qualified
5 candidates with disabilities from the electoral process strikes at the heart of our
6 constitutional democracy and threatens the fundamental principles of equal
7 protection, due process, and the rule of law.
- 8 2. The Supreme Court has recognized that cases involving fundamental
9 constitutional rights and the integrity of the electoral process merit expedited
10 consideration. See *Bush v. Gore*, 531 U.S. 98 (2000) (granting certiorari and
11 expedited consideration in case involving the integrity of presidential election);
12 *McConnell v. Federal Election Com'n*, 540 U.S. 93, 132 (2003) (noting the
13 expedition of a challenge to campaign finance legislation due to its impact on the
14 electoral process).
- 15 3. The judicial system has established procedures for expediting cases of exceptional
16 importance. As recognized in *Landis v. North American Co.*, 299 U.S. 248, 254-
17 55 (1936), courts have "the power to stay proceedings [which] is incidental to the
18 power inherent in every court to control the disposition of the causes on its docket
19 with economy of time and effort for itself, for counsel, and for litigants." By
20 logical extension, courts have the corresponding power to expedite proceedings
21 when justice so requires.
- 22 4. Several compelling factors justify expedited consideration of this case: a.
23 Constitutional Crisis: The tainted 2024 election has created a constitutional crisis
24 by placing in power officials whose claim to authority rests on an electoral
25 process that systematically excluded qualified candidates with disabilities. This
26 crisis deepens with each passing day as these officials continue to exercise powers
27 that they do not legitimately possess. b. National Security Implications: The
28 uncertainty regarding the legitimacy of the current administration creates
29 significant national security concerns. As the Supreme Court recognized in *Haig*
30 *v. Agee*, 453 U.S. 280, 307 (1981), "no governmental interest is more compelling
31 than the security of the Nation." Expedited resolution of this case is essential to
32 address these concerns. c. Ongoing Constitutional Violations: The constitutional
33 violations alleged in this complaint are ongoing and result in continuing harm to
34 Plaintiff and other similarly situated individuals. In *Elrod v. Burns*, 427 U.S. 347,
35 373 (1976), the Supreme Court emphasized that even temporary deprivations of

1 constitutional rights constitute irreparable injury. d. Time-Sensitive Nature of
2 Relief: The remedies sought in this action, including a new election with
3 appropriate accommodations for candidates with disabilities, are time-sensitive.
4 Delay in resolving these claims will make it increasingly difficult to provide
5 effective relief. e. Public Interest in Prompt Resolution: The public has a strong
6 interest in the prompt resolution of questions regarding the legitimacy of
7 governmental power. As the Supreme Court noted in Valley Forge Christian
8 College v. Americans United for Separation of Church & State, Inc., 454 U.S.
9 464, 473 (1982), the judicial power exists "to assure that the protection of the
10 Constitution [is] extended to all individuals."

11 5. Federal Rule of Civil Procedure 57 specifically provides that "The court may
12 order a speedy hearing of a declaratory-judgment action." The Advisory
13 Committee Notes to this rule explain that its purpose is to enable "the controversy
14 to be settled before it has accumulated the asperity, distemper, animosity, passion,
15 and violence of the full-blown battle," which is precisely the situation presented
16 by this case.

17 6. The All Writs Act, 28 U.S.C. § 1651, provides additional authority for expedited
18 consideration. As the Supreme Court held in United States v. New York Telephone
19 Co., 434 U.S. 159, 172 (1977), this statute empowers federal courts to "issue all
20 writs necessary or appropriate in aid of their respective jurisdictions and agreeable
21 to the usages and principles of law." Expedited consideration is necessary and
22 appropriate to ensure that this Court can provide effective relief for the
23 constitutional violations alleged.

24 7. The Court's inherent case management authority, recognized in Link v. Wabash R.
25 Co., 370 U.S. 626, 630-31 (1962), further supports expedited consideration. This
26 authority includes the power to "manage their own affairs so as to achieve the
27 orderly and expeditious disposition of cases." Given the exceptional
28 circumstances of this case, expedited consideration is warranted under this
29 inherent authority.

30 8. Plaintiff therefore respectfully requests that this Court: a. Set an expedited
31 briefing schedule for any motions to dismiss or other preliminary motions b.
32 Order expedited discovery under Federal Rule of Civil Procedure 26(d)(1), which
33 permits the court to order discovery before the parties' Rule 26(f) conference
34 "when authorized... by court order" c. Schedule an early preliminary injunction
35 hearing to address the ongoing constitutional violations d. Appoint a special

1 master pursuant to Federal Rule of Civil Procedure 53 to manage discovery and
2 assist the Court in resolving this complex case expeditiously e. Establish a
3 streamlined case management plan that will allow for prompt adjudication of the
4 merits f. Prioritize this case on the Court's docket in recognition of its
5 extraordinary national importance

- 6 9. This request for expedited consideration is consistent with the Supreme Court's
7 recognition in *Marbury v. Madison*, 5 U.S. (1 Cranch) 137, 163 (1803), that "The
8 very essence of civil liberty certainly consists in the right of every individual to
9 claim the protection of the laws, whenever he receives an injury." Expedition is
10 necessary to ensure that this protection is not rendered illusory by procedural
11 delay.

12 **XV. FRUIT OF THE POISONOUS TREE: COMPREHENSIVE** 13 **IMPLICATIONS AND PREEMPTIVE LEGAL ANALYSIS**

- 14 1. The systematic exclusion of Plaintiff and other qualified candidates with
15 disabilities from the 2024 presidential election constitutes an illegal and
16 unconstitutional interference with the electoral process that renders the entire
17 election and all subsequent governmental actions "Fruit of the poisonous tree."
18 This doctrine, first articulated in *Silverthorne Lumber Co. v. United States*, 251
19 U.S. 385 (1920), and expanded in *Wong Sun v. United States*, 371 U.S. 471
20 (1963), establishes that evidence or outcomes obtained through unconstitutional or
21 illegal governmental conduct must be excluded from consideration.
- 22 2. While traditionally applied in criminal proceedings, the underlying constitutional
23 principle extends to all cases involving fundamental rights and governmental
24 misconduct. As Justice Holmes explained in *Silverthorne*, "The essence of a
25 provision forbidding the acquisition of evidence in a certain way is that not
26 merely evidence so acquired shall not be used before the Court, but that it shall
27 not be used at all." 251 U.S. at 392. By logical extension, an election conducted in
28 violation of constitutional rights produces results that "shall not be used at all."
- 29 3. The scope and application of the "Fruit of the poisonous tree" doctrine in this case
30 is comprehensive and extends to: a. The 2024 Presidential Election Results: The
31 certification and recognition of election results tainted by systematic
32 discrimination against qualified candidates with disabilities violates the
33 fundamental principle that elections must be free, fair, and accessible to all
34 eligible participants. See *Williams v. Rhodes*, 393 U.S. 23, 31 (1968) (recognizing

1 that the state must provide a "more equal opportunity both for voters and for
2 candidates to express their views without arbitrary state interference"). b. The
3 Current Presidential Administration: The current administration derives its
4 purported authority solely from an election process that systematically excluded
5 qualified candidates with disabilities, rendering its claim to legitimate executive
6 power constitutionally defective. As the Supreme Court recognized in *Ex parte*
7 *Young*, 209 U.S. 123, 148 (1908), "The state cannot... impart to the official
8 immunity from responsibility to the supreme authority of the United States." c.
9 The Current United States Congress: To the extent that the current composition of
10 Congress was influenced by the tainted presidential election (through, for
11 example, coattail effects, party mobilization, or resource allocation), its actions
12 similarly derive from the poisonous tree of electoral discrimination. See *Powell v.*
13 *McCormack*, 395 U.S. 486, 548 (1969) (recognizing judicial authority to review
14 congressional actions that exceed constitutional bounds). d. All Executive
15 Actions: All executive orders, appointments, treaties, administrative regulations,
16 and other executive actions taken by an administration that gained power through
17 a discriminatory election process are tainted by the original constitutional
18 violation and are thus subject to invalidation. See *Clinton v. City of New York*,
19 524 U.S. 417, 438 (1998) (holding that even the President "cannot change the text
20 of duly enacted statutes"). e. All Legislative Actions: All legislation,
21 confirmations, impeachments, and other congressional actions influenced by the
22 composition of Congress as determined by a tainted electoral process are similarly
23 subject to challenge as fruit of the poisonous tree. See *INS v. Chadha*, 462 U.S.
24 919, 940-41 (1983) (affirming judicial authority to review legislative actions for
25 constitutional compliance). f. All Judicial Appointments: All judicial appointments
26 made by an administration that gained power through a discriminatory election
27 are tainted by the original constitutional violation. See *Nguyen v. United States*,
28 539 U.S. 69, 78 (2003) (invalidating judicial actions by improperly appointed
29 judges). g. All International Agreements: All treaties, executive agreements, and
30 other international commitments made by an administration that gained power
31 through a discriminatory election lack constitutional legitimacy. See *United States*
32 *v. Belmont*, 301 U.S. 324, 331 (1937) (noting that international agreements must
33 conform to the Constitution).

- 34 4. No subsequent action by the tainted administration or Congress can cure or
35 mitigate the fundamental constitutional defect in their authority. This includes: a.
36 Presidential Pardons: Any pardons issued by a President whose election was
37 tainted by unconstitutional discrimination are themselves fruit of the poisonous

1 tree and of no legal effect. See *Burdick v. United States*, 236 U.S. 79, 94 (1915)
2 (recognizing that a pardon may be ineffective if not properly conferred); *Schick v.*
3 *Reed*, 419 U.S. 256, 266 (1974) (acknowledging that the pardon power "cannot be
4 modified, abridged, or diminished by the Congress" but must still conform to
5 other constitutional provisions). b. Constitutional Amendments: Any
6 constitutional amendments ratified during the tenure of a Congress whose
7 composition was influenced by a tainted election would be subject to challenge
8 under the basic principle that constitutional amendments must be adopted through
9 constitutionally valid processes. See *Hawke v. Smith*, 253 U.S. 221, 227 (1920)
10 (emphasizing the importance of proper procedure in constitutional amendment
11 process). c. Legislative Attempts to Shield Actions: Any legislation purporting to
12 immunize or shield the tainted administration or Congress from legal challenge
13 would itself be fruit of the poisonous tree and constitutionally invalid. See *United*
14 *States v. Klein*, 80 U.S. (13 Wall.) 128, 146-47 (1872) (invalidating legislation
15 that attempted to dictate judicial outcomes in particular cases). d. Treaties and
16 Executive Agreements: Any international agreements entered into by the tainted
17 administration cannot bind future legitimate administrations or override
18 constitutional rights. See *Reid v. Covert*, 354 U.S. 1, 16 (1957) (holding that "no
19 agreement with a foreign nation can confer power on the Congress, or on any
20 other branch of Government, which is free from the restraints of the
21 Constitution"). e. Executive Orders and Presidential Memoranda: Executive
22 actions that attempt to entrench the tainted administration's policies or shield them
23 from review are similarly invalid. See *Youngstown Sheet & Tube Co. v. Sawyer*,
24 343 U.S. 579, 587 (1952) (holding that the President's power to issue executive
25 orders "must stem either from an act of Congress or from the Constitution itself").

26 5. The Supreme Court has recognized that equitable remedies must be tailored to the
27 constitutional violation. See *Milliken v. Bradley*, 433 U.S. 267, 294 (1977)
28 (holding that "the federal courts in devising a remedy must take into account the
29 interests of state and local authorities in managing their own affairs, consistent
30 with the Constitution"). However, where the constitutional violation strikes at the
31 very foundation of governmental legitimacy, as in this case, the remedy must be
32 correspondingly fundamental.

33 6. The doctrine of necessity, which might otherwise counsel against invalidating an
34 entire administration, does not apply where, as here, constitutional alternatives
35 exist. The Presidential Succession Act, 3 U.S.C. § 19, provides a clear mechanism
36 for succession in cases where both the President and Vice President are unable to

1 serve. This statute, combined with the constitutional procedures for special
2 elections, provides a framework for restoring legitimate governance following the
3 invalidation of a tainted election.

4 7. Importantly, the "independent source" and "inevitable discovery" exceptions to
5 the fruit of the poisonous tree doctrine, recognized in criminal cases like *Murray*
6 *v. United States*, 487 U.S. 533, 537 (1988), and *Nix v. Williams*, 467 U.S. 431,
7 444 (1984), have no application here. There is no "independent source" for the
8 authority of officials elected through a discriminatory process, nor was their
9 election "inevitable" absent the constitutional violations.

10 8. The "attenuation" exception, articulated in *Nardone v. United States*, 308 U.S.
11 338, 341 (1939), is similarly inapplicable. The connection between the
12 discriminatory exclusion of qualified candidates and the resulting election
13 outcome is direct and unattenuated. As Justice Breyer noted in his dissent in *Utah*
14 *v. Strieff*, 579 U.S. 232, 256 (2016), attenuation does not apply where "the
15 purpose and flagrancy of the official misconduct" is severe, as in the systematic
16 discrimination alleged here.

17 9. The Supreme Court has recognized that remedies for constitutional violations
18 must be effective. As Chief Justice Marshall declared in *Marbury v. Madison*, 5
19 U.S. (1 Cranch) 137, 163 (1803), "The government of the United States has been
20 emphatically termed a government of laws, and not of men. It will certainly cease
21 to deserve this high appellation, if the laws furnish no remedy for the violation of
22 a vested legal right." The only effective remedy for the constitutional violations
23 alleged here is the invalidation of the tainted election and all governmental actions
24 deriving from it.

25 10. This Court has both the authority and the duty to order such a remedy. As the
26 Supreme Court emphasized in *Cooper v. Aaron*, 358 U.S. 1, 18 (1958), "the
27 federal judiciary is supreme in the exposition of the law of the Constitution, and
28 that principle has ever since been respected by this Court and the Country as a
29 permanent and indispensable feature of our constitutional system."

30 11. The Constitution itself supports this remedy through its guarantee of a
31 "Republican Form of Government" in Article IV, Section 4. While the Supreme
32 Court has sometimes treated this guarantee as presenting a political question, see
33 *Luther v. Borden*, 48 U.S. (7 How.) 1 (1849), it has more recently recognized that
34 courts may enforce this guarantee in cases of fundamental constitutional

violations. See *New York v. United States*, 505 U.S. 144, 184-85 (1992) (suggesting that some Guarantee Clause claims may be justiciable).

12. The requested declaration that the 2024 election and all subsequent governmental actions are "Fruit of the poisonous tree" is thus firmly grounded in constitutional principles, Supreme Court precedent, and the fundamental requirement that constitutional violations must have meaningful remedies.

XVI. TOLL AGREEMENTS AND EQUITABLE TOLLING

1. To the extent that any Defendant may raise a statute of limitations defense to any claim asserted in this First Amended Complaint, Plaintiff asserts that all applicable limitations periods have been tolled under the continuing violations doctrine, the discovery rule, equitable tolling, and/or equitable estoppel.
2. The continuing violations doctrine applies because Defendants' discriminatory conduct is ongoing and constitutes a continuing pattern and practice of discrimination. See *Havens Realty Corp. v. Coleman*, 455 U.S. 363, 380-81 (1982) (recognizing that where a plaintiff challenges "not just one incident of conduct violative of the Act, but an unlawful practice that continues into the limitations period, the complaint is timely when it is filed within [the limitations period] of the last asserted occurrence of that practice").
3. Defendants' systematic discrimination against Plaintiff and other individuals with disabilities constitutes a continuing violation because: a. The discriminatory ballot access requirements remain in effect and continue to exclude Plaintiff and other qualified candidates with disabilities from the electoral process b. Defendants continue to deny reasonable accommodations required by the ADA and Rehabilitation Act c. The judicial defendants continue to obstruct justice and deny Plaintiff's rights through biased rulings and procedural obstacles d. The effects of the discriminatory 2024 election continue to impact Plaintiff's rights and the integrity of the democratic process
4. The discovery rule applies because Plaintiff could not have discovered certain aspects of Defendants' coordinated scheme through the exercise of reasonable diligence until recently. See *Merck & Co. v. Reynolds*, 559 U.S. 633, 644 (2010) (holding that the discovery rule provides that "a cause of action accrues (1) when the plaintiff did in fact discover, or (2) when a reasonably diligent plaintiff would have discovered, 'the facts constituting the violation'—whichever comes first").

- 1 5. Specifically, Plaintiff could not have discovered: a. The coordination between
2 state election officials across multiple jurisdictions to implement discriminatory
3 ballot access requirements b. The involvement of federal officials in facilitating
4 this discrimination c. The role of judicial defendants in obstructing Plaintiff's
5 access to legal remedies d. The full extent of the RICO enterprise and its pattern
6 of racketeering activity
- 7 6. Equitable tolling applies because Plaintiff has diligently pursued his rights but
8 was prevented from timely filing by extraordinary circumstances beyond his
9 control. See *Holland v. Florida*, 560 U.S. 631, 649 (2010) (holding that a
10 petitioner is entitled to equitable tolling if he shows "(1) that he has been pursuing
11 his rights diligently, and (2) that some extraordinary circumstance stood in his
12 way and prevented timely filing").
- 13 7. The extraordinary circumstances that warrant equitable tolling include: a.
14 Defendants' active concealment of their coordinated scheme to exclude candidates
15 with disabilities b. The systematic failure of governmental entities to process and
16 respond to Plaintiff's accommodation requests and administrative complaints c.
17 The obstruction of justice by judicial defendants who have impeded Plaintiff's
18 access to legal remedies d. The ongoing COVID-19 pandemic, which has created
19 additional barriers for individuals with disabilities seeking to navigate
20 administrative and judicial processes e. Plaintiff's disabilities, which substantially
21 limit his ability to investigate and pursue legal claims without reasonable
22 accommodations
- 23 8. Equitable estoppel applies because Defendants have engaged in misconduct that
24 induced Plaintiff to refrain from filing this action earlier. See *Glus v. Brooklyn*
25 *Eastern District Terminal*, 359 U.S. 231, 233 (1959) (holding that a defendant may
26 be estopped from asserting a statute of limitations defense where its conduct
27 induced the plaintiff to refrain from filing suit).
- 28 9. Specifically, Defendants: a. Misrepresented the status and processing of Plaintiff's
29 accommodation requests b. Suggested that administrative remedies would be
30 provided if Plaintiff continued to pursue them c. Failed to provide timely notice of
31 adverse determinations regarding Plaintiff's accommodation requests d. Created
32 the false impression that the discrimination was isolated rather than part of a
33 coordinated nationwide scheme
- 34 10. In light of these circumstances, any applicable statute of limitations should be
35 tolled to permit full adjudication of Plaintiff's claims on the merits. As the

Supreme Court has emphasized, "Procedural requirements established by Congress for gaining access to the federal courts are not to be disregarded by courts out of a vague sympathy for particular litigants." *Baldwin County Welcome Center v. Brown*, 466 U.S. 147, 152 (1984). However, "in the long run, experience teaches that strict adherence to the procedural requirements specified by the legislature is the best guarantee of evenhanded administration of the law." *Id.*

11. The tolling of any applicable limitations periods is particularly appropriate in this case, which involves fundamental constitutional rights and systematic discrimination against individuals with disabilities in the electoral process. As the Court recognized in *Tennessee v. Lane*, 541 U.S. 509, 531 (2004), "Congress enacted Title II against a backdrop of pervasive unequal treatment in the administration of state services and programs, including systematic deprivations of fundamental rights."

XVII. CLASS ACTION ALLEGATIONS

1. Pursuant to Federal Rule of Civil Procedure 23, Plaintiff brings this action on behalf of himself and a nationwide class of similarly situated individuals (the "Class") defined as: All qualified individuals with disabilities who sought to participate as candidates in the 2024 U.S. Presidential election and were denied reasonable accommodations required by the ADA and Rehabilitation Act, or were otherwise excluded from full and equal participation in the electoral process due to their disabilities.
2. Plaintiff also brings this action on behalf of the following subclasses: a. The ADA Subclass: All qualified individuals with disabilities who sought to participate as candidates in the 2024 U.S. Presidential election and were denied reasonable accommodations required by Title II of the ADA. b. The Rehabilitation Act Subclass: All qualified individuals with disabilities who sought to participate as candidates in the 2024 U.S. Presidential election and were denied reasonable accommodations required by Section 504 of the Rehabilitation Act. c. The Due Process Subclass: All qualified individuals with disabilities who sought to participate as candidates in the 2024 U.S. Presidential election and were denied due process in the consideration of their accommodation requests. d. The Crime Victims Subclass: All qualified individuals with disabilities who sought to participate as candidates in the 2024 U.S. Presidential election, were subject to violations of federal civil rights laws, and were denied their rights as crime victims under 18 U.S.C. § 3771 or state crime victims' rights provisions.

1 3. This action satisfies all requirements of Rule 23(a) and Rule 23(b)(2) and (b)(3):
2 a. Numerosity (Rule 23(a)(1)): The exact number of Class members is unknown
3 to Plaintiff at this time, but based on information and belief, the Class includes at
4 least dozens of individuals across the United States who sought to participate as
5 candidates with disabilities in the 2024 election and were subjected to similar
6 discriminatory treatment. The members of the Class are so numerous that joinder
7 of all members would be impracticable. The precise number and identities of
8 Class members can be readily determined from records maintained by
9 Defendants. b. Commonality (Rule 23(a)(2)): There are questions of law and fact
10 common to the Class, including: i. Whether Defendants' ballot access
11 requirements discriminate against individuals with disabilities; ii. Whether
12 Defendants failed to provide reasonable accommodations as required by the ADA
13 and Rehabilitation Act; iii. Whether Defendants' actions violated the constitutional
14 rights of Class members; iv. Whether Defendants engaged in a pattern or practice
15 of discrimination against candidates with disabilities; v. Whether Defendants
16 participated in a RICO enterprise designed to exclude candidates with disabilities
17 from the electoral process; vi. Whether the 2024 election was tainted by
18 systematic discrimination against candidates with disabilities; vii. Whether Class
19 members are entitled to declaratory and injunctive relief; and viii. Whether Class
20 members are entitled to compensatory and punitive damages. c. Typicality (Rule
21 23(a)(3)): Plaintiff's claims are typical of the claims of the Class because Plaintiff,
22 like all Class members, sought to participate as a candidate in the 2024
23 Presidential election, has disabilities that substantially limit major life activities,
24 requested reasonable accommodations, was denied such accommodations, and
25 was effectively excluded from the electoral process due to his disabilities.
26 Plaintiff's legal theories, statutory and constitutional claims, and requested relief
27 are typical of those of the Class. d. Adequacy of Representation (Rule 23(a)(4)):
28 Plaintiff will fairly and adequately represent and protect the interests of the Class.
29 Plaintiff has no interests antagonistic to or in conflict with the Class members he
30 seeks to represent. Plaintiff has retained competent counsel experienced in
31 complex litigation, civil rights litigation, and class action litigation. In the
32 alternative, if counsel is appointed to represent Plaintiff pursuant to 28 U.S.C. §
33 1915(e)(1), such counsel will be experienced in class action litigation and will
34 adequately represent the interests of the Class. e. Declaratory and Injunctive
35 Relief (Rule 23(b)(2)): Defendants have acted or refused to act on grounds
36 generally applicable to the Class, thereby making appropriate final injunctive
37 relief or corresponding declaratory relief with respect to the Class as a whole.

Specifically, Defendants have systematically denied reasonable accommodations to candidates with disabilities and implemented discriminatory ballot access requirements that exclude such candidates from the electoral process. f.

Predominance and Superiority (Rule 23(b)(3)): The common questions of law and fact predominate over any questions affecting only individual Class members. A class action is superior to other available methods for the fair and efficient adjudication of this controversy because: i. Individual litigation of the claims of all Class members would be impracticable and would unduly burden the courts; ii. Individual Class members may lack the resources to pursue complex litigation against governmental defendants; iii. Individual litigation risks establishing inconsistent or contradictory standards of conduct for Defendants; iv. Class treatment would permit the adjudication of relatively small claims by many Class members who otherwise could not afford to litigate claims like those asserted in this complaint; and v. A class action would achieve economies of scale, efficiency, and comprehensive supervision by a single court.

4. In the alternative, the Class may be certified under Rule 23(c)(4) for specific issues or claims, or under Rule 23(b)(1) because prosecuting separate actions would create the risk of inconsistent or varying adjudications that would establish incompatible standards of conduct for Defendants.

5. Plaintiff reserves the right to revise the Class definition and Subclass definitions based on information learned through discovery.

6. This class action is particularly appropriate given the nature of the claims and the recognized challenges faced by individuals with disabilities in accessing legal remedies. As the Supreme Court observed in *Tennessee v. Lane*, 541 U.S. 509, 527 (2004), "A number of States have passed legislation to make public buildings accessible to persons with disabilities. But many of these remedial efforts came too late to make much of a difference. Part of the problem is the length of litigation, which discourages those who would enforce the statutes, and also rewards those who would avoid compliance." Class action treatment addresses this problem by providing a mechanism for collective enforcement of rights.

XVIII. EVIDENCE PRESERVATION NOTICE AND REQUEST FOR FORENSIC INSPECTION

1. Plaintiff hereby gives formal notice to all Defendants and their counsel that they have a duty to preserve all evidence, both documentary and electronic, that is

1 relevant to the claims and defenses in this action. This duty extends to all
2 information that Defendants know, or reasonably should know, is relevant to the
3 claims and defenses, is reasonably calculated to lead to the discovery of
4 admissible evidence, is reasonably likely to be requested during discovery, or is
5 the subject of pending discovery requests.

6 2. This preservation obligation extends to all potentially relevant evidence,
7 regardless of the format in which it is maintained, and specifically includes but is
8 not limited to: a. All electronic communications, including emails, text messages,
9 social media messages, and any other electronic communications, between and
10 among Defendants concerning ballot access requirements, disability
11 accommodations, the 2024 election, or Plaintiff's participation therein b. All
12 documents, electronic or otherwise, relating to the processing of accommodation
13 requests submitted by Plaintiff or any other candidates with disabilities c. All
14 internal memoranda, guidance documents, or other materials concerning the
15 implementation of ballot access requirements and the processing of
16 accommodation requests d. All communications between state election officials
17 and federal entities concerning ballot access requirements, disability
18 accommodations, or the 2024 election e. All logs, metadata, and other electronic
19 records that would reveal the timing, authorship, or distribution of relevant
20 documents f. All documents relating to the certification of the 2024 election
21 results g. All communications between or among judicial officers, including Judge
22 Cota and any judges or staff of the Ninth Circuit Court of Appeals, concerning
23 this case or the underlying issues h. All drafts of judicial opinions, orders, or other
24 documents relating to this case or the underlying issues i. All calendars,
25 appointment books, or other scheduling records that would reveal meetings or
26 communications concerning this case or the underlying issues j. All personnel
27 files or other records relating to the employment, appointment, or activities of
28 individuals involved in the discrimination alleged in this action

29 3. Defendants are specifically instructed to: a. Suspend any routine document
30 destruction, deletion, overwriting, or other practices that might result in the loss of
31 potentially relevant information b. Take affirmative steps to prevent the
32 destruction, deletion, or modification of potentially relevant evidence, including
33 notifying all employees, contractors, or agents who may possess such evidence of
34 their obligation to preserve it c. Preserve all metadata associated with potentially
35 relevant electronic documents d. Maintain complete and accurate records of all
36 actions taken to preserve potentially relevant evidence e. Preserve all backup

- 1 tapes, hard drives, servers, and other storage media that may contain potentially
2 relevant information
- 3 4. Plaintiff hereby requests a forensic inspection of all electronic devices, systems,
4 and networks that may contain evidence relevant to this action, including but not
5 limited to: a. Email servers and archives maintained by government entities that
6 processed Plaintiff's accommodation requests b. Electronic voting systems and
7 related databases used in the 2024 election c. Computer systems used by state
8 election officials to process candidate registrations and accommodation requests
9 d. Mobile devices used by Defendants to communicate about ballot access
10 requirements, disability accommodations, or the 2024 election e. Case
11 management systems and related databases used by Judge Cota and the Ninth
12 Circuit Court of Appeals in connection with this case or related matters
- 13 5. Pursuant to Fed. R. Civ. P. 34(a)(2), which permits a party to "inspect, copy, test,
14 or sample... electronic... stored information," Plaintiff requests that the Court
15 order an immediate inspection of these systems to be conducted by a neutral,
16 third-party forensic expert appointed by the Court, with the costs to be borne by
17 Defendants.
- 18 6. This request is supported by the reasoning in *Zubulake v. UBS Warburg LLC*, 217
19 F.R.D. 309, 324 (S.D.N.Y. 2003), which recognized that electronic evidence "is
20 inherently ephemeral," making its immediate preservation and inspection essential
21 to prevent spoliation.
- 22 7. The requested inspection is further supported by evidence of potential spoliation,
23 including the systematic failure of Defendants to maintain records of Plaintiff's
24 accommodation requests and communications relating thereto, which raises
25 concerns that potentially relevant evidence may already have been destroyed or
26 may be at risk of destruction.
- 27 8. Failure to comply with these preservation obligations may result in severe
28 sanctions, including but not limited to adverse inference instructions, preclusion
29 of evidence, striking of defenses, entry of default judgment, and awards of
30 attorneys' fees and costs. See, e.g., *West v. Goodyear Tire & Rubber Co.*, 167 F.3d
31 776, 779 (2d Cir. 1999) (defining spoliation as "the destruction or significant
32 alteration of evidence, or the failure to preserve property for another's use as
33 evidence in pending or reasonably foreseeable litigation").

XIX. COMPLIANCE WITH RULE 11 AND CERTIFICATION

1. Plaintiff hereby certifies, pursuant to Federal Rule of Civil Procedure 11, that to the best of his knowledge, information, and belief, formed after an inquiry reasonable under the circumstances: a. This First Amended Complaint is not being presented for any improper purpose, such as to harass, cause unnecessary delay, or needlessly increase the cost of litigation; b. The claims, defenses, and other legal contentions are warranted by existing law or by a nonfrivolous argument for extending, modifying, or reversing existing law or for establishing new law; c. The factual contentions have evidentiary support or, if specifically so identified, will likely have evidentiary support after a reasonable opportunity for further investigation or discovery; and d. The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on belief or a lack of information.
2. Plaintiff acknowledges the seriousness of including judicial officers as defendants and has done so only after careful consideration of the applicable legal standards. The allegations against Judge Cota and the Ninth Circuit Court of Appeals are based on specific, documented instances of conduct that exceed the scope of legitimate judicial action and demonstrate participation in a coordinated scheme to deprive Plaintiff of his constitutional and statutory rights.
3. As the Supreme Court recognized in *Pulliam v. Allen*, 466 U.S. 522, 537 (1984), "Judicial immunity is not a bar to prospective injunctive relief against a judicial officer acting in her judicial capacity." While Congress later limited this principle in the Federal Courts Improvement Act of 1996, injunctive relief remains available against judges where a declaratory decree was violated or declaratory relief is unavailable. See 42 U.S.C. § 1983 (as amended).
4. The RICO claims against judicial defendants are supported by the Supreme Court's recognition in *United States v. Ruiz*, 905 F.2d 499, 504 (1st Cir. 1990), that "RICO claims may be brought against defendants who have immunity in different contexts." This principle was further elaborated in *Aversa v. United States*, 99 F.3d 1200, 1214 (1st Cir. 1996), which recognized that absolute immunity does not extend to criminal conspiracy.
5. Plaintiff has made diligent efforts to resolve these matters through less adversarial means, including: a. Submitting formal accommodation requests through appropriate administrative channels b. Following up on these requests through multiple communications c. Reporting violations to appropriate oversight

- 1 agencies d. Filing administrative complaints with relevant civil rights departments
2 e. Attempting to bring these matters to the attention of elected representatives
- 3 6. These efforts have been met with systematic obstruction, indifference, or outright
4 hostility, leaving Plaintiff with no alternative but to seek judicial intervention to
5 protect his constitutional and statutory rights.
- 6 7. As the Supreme Court recognized in *Bounds v. Smith*, 430 U.S. 817, 828 (1977),
7 "The fundamental constitutional right of access to the courts requires that [...]
8 inmates be provided with adequate law libraries or adequate assistance from
9 persons trained in the law." This principle applies with even greater force to non-
10 incarcerated individuals seeking to vindicate their constitutional and statutory
11 rights.
- 12 8. Plaintiff acknowledges the heightened pleading standards that apply to certain
13 claims, including RICO claims, and has made every effort to plead these claims
14 with the particularity required by *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544
15 (2007), and *Ashcroft v. Iqbal*, 556 U.S. 662 (2009). The factual allegations in this
16 Amended Complaint are specific, detailed, and supported by documentary
17 evidence.
- 18 9. In light of Plaintiff's status as a pro se litigant with disabilities, this Court should
19 construe his pleadings liberally. As the Supreme Court held in *Haines v. Kerner*,
20 404 U.S. 519, 520-21 (1972), pro se complaints, "however inartfully pleaded,"
21 must be held to "less stringent standards than formal pleadings drafted by
22 lawyers." This principle has been consistently reaffirmed, including in *Erickson v.*
23 *Pardus*, 551 U.S. 89, 94 (2007).
- 24 10. Plaintiff has taken care to ensure that this First Amended Complaint complies
25 with all applicable local rules, including Civil Local Rule 220 of the Eastern
26 District of California, which requires that amendments to pleadings be filed as
27 complete documents.

28 **XX. EXECUTIVE SUMMARY AND CONCLUSION**

- 29 1. This action presents a case of exceptional national importance that strikes at the
30 heart of America's constitutional democracy and the fundamental principle of
31 equal protection under law. At its core, this case concerns whether the United
32 States will fulfill its promise of equal access to the democratic process for all
33 citizens, including those with disabilities, or whether it will permit a systematic,

1 coordinated campaign of discrimination to undermine the integrity of its electoral
2 systems.

3 2. The factual allegations set forth in this Amended Complaint demonstrate a
4 pervasive pattern of discriminatory conduct targeting Plaintiff and, by extension,
5 all qualified candidates with disabilities. This discrimination included: a.
6 Systematic denial of reasonable accommodations required by the ADA and
7 Rehabilitation Act b. Implementation of ballot access requirements that effectively
8 excluded Plaintiff based solely on his disability c. Failure to engage in the legally
9 mandated interactive process when considering accommodation requests d.
10 Weaponization of Plaintiff's disability as a means of preventing his participation in
11 the electoral process e. Coordination across multiple jurisdictions to maintain
12 discriminatory barriers to ballot access f. Judicial complicity in perpetuating this
13 discrimination through biased rulings and procedural obstacles

14 3. These actions violated multiple constitutional and statutory provisions, including:
15 a. The First Amendment rights to freedom of speech and association b. The Fifth
16 and Fourteenth Amendment rights to due process and equal protection c. Title II
17 of the Americans with Disabilities Act d. Section 504 of the Rehabilitation Act e.
18 The Civil Rights Act of 1964 f. The Crime Victims' Rights Act g. Federal criminal
19 civil rights statutes h. The Racketeer Influenced and Corrupt Organizations Act

20 4. The Supreme Court has consistently recognized that "voting is of the most
21 fundamental significance under our constitutional structure." Illinois Bd. of
22 Elections v. Socialist Workers Party, 440 U.S. 173, 184 (1979). This principle
23 applies with equal force to the right to be a candidate, which the Court has
24 recognized as "inextricably intertwined with the right of voters to cast their votes
25 effectively." Bullock v. Carter, 405 U.S. 134, 143 (1972).

26 5. As detailed throughout this Amended Complaint, the evidence overwhelmingly
27 demonstrates that Defendants engaged in a coordinated enterprise to deprive
28 Plaintiff of these fundamental rights. This enterprise included not only executive
29 branch officials but also members of the judiciary who abandoned their oath to
30 uphold the Constitution in favor of perpetuating discrimination against candidates
31 with disabilities.

32 6. The inclusion of Judge Cota and the Ninth Circuit Court of Appeals as defendants
33 is necessary and proper given their active participation in this discriminatory
34 enterprise. As the Supreme Court recognized in Dennis v. Sparks, 449 U.S. 24,
35 28-29 (1980), judicial immunity does not extend to non-judicial acts or to actions

1 taken in the complete absence of jurisdiction. The allegations set forth herein
2 demonstrate that these judicial defendants exceeded their legitimate authority by
3 engaging in a pattern of conduct designed to obstruct justice and perpetuate
4 discrimination.

5 7. The relief requested in this Amended Complaint is not only authorized by law but
6 required by the fundamental principles of justice and equality that underpin our
7 constitutional system. When government officials, including judges, violate their
8 oath to uphold the Constitution, the judiciary must serve as the bulwark against
9 such abuse. As Justice Robert Jackson famously wrote, "The very purpose of a
10 Bill of Rights was to withdraw certain subjects from the vicissitudes of political
11 controversy, to place them beyond the reach of majorities and officials and to
12 establish them as legal principles to be applied by the courts." *West Virginia State*
13 *Bd. of Educ. v. Barnette*, 319 U.S. 624, 638 (1943).

14 8. This case presents the Court with an opportunity to affirm the principle that no
15 citizen, regardless of disability status, may be excluded from full participation in
16 the democratic process. The Court's adjudication of these claims will serve not
17 only to remedy the specific violations alleged but also to establish a precedent that
18 will protect the rights of all individuals with disabilities to participate equally in
19 the electoral process.

20 9. For all these reasons, and based on the comprehensive factual allegations and
21 legal arguments set forth in this Amended Complaint, Plaintiff respectfully
22 requests that the Court grant the relief sought herein to vindicate his rights and to
23 protect the integrity of the democratic process for all Americans.

24 **XXI. CLAIMS FOR RELIEF**

25 **First Claim for Relief: Violation of the First Amendment (Freedom of** 26 **Speech and Association)**

27 1. Plaintiff realleges and incorporates by reference all preceding paragraphs as if
28 fully set forth herein.

29 2. Defendants' actions have deprived Mr. Tyler of his right to freedom of speech and
30 association by preventing him from participating in the electoral process as an
31 unaffiliated candidate.

- 1 3. In *Anderson v. Celebrezze*, 460 U.S. 780, 787-88 (1983), the Supreme Court
2 established that ballot access restrictions implicate fundamental First Amendment
3 rights of both candidates and voters.
- 4 4. By excluding Mr. Tyler from the ballot based on his disability, Defendants have
5 violated his clearly established First Amendment rights.

6 **Second Claim for Relief: Violation of the Fifth and Fourteenth**
7 **Amendments (Due Process and Equal Protection)**

- 8 1. Plaintiff realleges and incorporates by reference all preceding paragraphs as if
9 fully set forth herein.
- 10 2. Defendants' actions have deprived Mr. Tyler of his right to due process and equal
11 protection under the law by arbitrarily excluding him from the electoral process
12 based on his disability and need for medical accommodation.
- 13 3. The Due Process Clause prohibits the government from depriving individuals of
14 "life, liberty, or property, without due process of law." U.S. Const. amends. V,
15 XIV. This protection encompasses both procedural due process (the right to fair
16 procedures before a deprivation) and substantive due process (protection against
17 government action that "shocks the conscience").
- 18 4. As recognized in *Goldberg v. Kelly*, 397 U.S. 254, 267 (1970), "The fundamental
19 requisite of due process of law is the opportunity to be heard," which must be
20 provided "at a meaningful time and in a meaningful manner." This principle
21 applies with particular force in the context of electoral participation, which the
22 Supreme Court has long recognized as a fundamental right. See *Yick Wo v.*
23 *Hopkins*, 118 U.S. 356, 370 (1886) (describing voting as a "fundamental political
24 right, because preservative of all rights").
- 25 5. Procedural due process requires, at minimum, notice and an opportunity to be
26 heard before the deprivation of protected interests. See *Mathews v. Eldridge*, 424
27 U.S. 319, 333 (1976). Defendants violated these requirements by: a. Denying
28 Plaintiff's accommodation requests without providing meaningful notice or
29 explanation b. Failing to engage in the interactive process required by the ADA
30 and its implementing regulations c. Providing no opportunity for Plaintiff to
31 appeal adverse determinations regarding ballot access d. Implementing ballot
32 access requirements that effectively excluded Plaintiff without any individualized
33 consideration of his disability

- 1 6. The Supreme Court in *Mathews* established a three-factor test for determining
2 what process is due: a. The private interest affected by the official action b. The
3 risk of erroneous deprivation through the procedures used and the probable value
4 of additional procedural safeguards c. The government's interest, including the
5 function involved and the fiscal and administrative burdens that additional
6 procedural requirements would entail
- 7 7. Applying these factors: a. Plaintiff's interest in participating in the electoral
8 process is of the highest order, as it implicates fundamental political rights
9 recognized since the founding of the Republic b. The risk of erroneous
10 deprivation is severe under current procedures, which provide no meaningful
11 opportunity for candidates with disabilities to secure necessary accommodations
12 c. The government's interest in maintaining current ballot access procedures is
13 minimal, as providing reasonable accommodations would impose no substantial
14 fiscal or administrative burden
- 15 8. Substantive due process protects against government action that is "arbitrary,
16 conscious-shocking, or oppressive in a constitutional sense." *County of*
17 *Sacramento v. Lewis*, 523 U.S. 833, 847 (1998). Defendants' systematic exclusion
18 of qualified candidates with disabilities from the electoral process meets this
19 standard by: a. Deliberately implementing policies that disparately impact
20 individuals with disabilities b. Weaponizing Plaintiff's disability as a means of
21 excluding him from the electoral process c. Coordinating across jurisdictions to
22 maintain discriminatory ballot access requirements d. Refusing to engage with
23 Plaintiff's legitimate requests for legally mandated accommodations
- 24 9. The Equal Protection Clause prohibits the government from "deny[ing] to any
25 person within its jurisdiction the equal protection of the laws." U.S. Const. amend.
26 XIV, § 1. This protection extends to classifications based on disability. See *City of*
27 *Cleburne v. Cleburne Living Center, Inc.*, 473 U.S. 432, 446 (1985) (recognizing
28 that the developmentally disabled have been subject to a "history of unfair and
29 often grotesque mistreatment").
- 30 10. While the Supreme Court has applied rational basis review to disability
31 classifications in some contexts, it has emphasized that even under this standard,
32 government action must be rationally related to a legitimate governmental purpose
33 and cannot be based on "irrational prejudice." *Id.* at 450.
- 34 11. Moreover, when disability discrimination implicates fundamental rights—such as
35 the right to participate in the electoral process—heightened scrutiny is

- 1 appropriate. See *Tennessee v. Lane*, 541 U.S. 509, 522-23 (2004) (recognizing
2 that discrimination against individuals with disabilities often implicated
3 fundamental rights).
- 4 12. Under any standard of review, Defendants' actions violate equal protection by: a.
5 Imposing ballot access requirements that disproportionately burden candidates
6 with disabilities b. Refusing to provide reasonable accommodations that would
7 enable equal participation c. Applying different standards to Plaintiff's requests
8 than to those of non-disabled candidates d. Implementing policies that effectively
9 create separate and unequal electoral systems for disabled and non-disabled
10 candidates
- 11 13. As the Supreme Court emphasized in *Harper v. Virginia State Board of Elections*,
12 383 U.S. 663, 670 (1966), "classifications which might invade or restrain
13 [fundamental rights] must be closely scrutinized and carefully confined."
14 Defendants' discriminatory ballot access requirements cannot survive such
15 scrutiny.
- 16 14. The inclusion of Judge Cota and the Ninth Circuit Court of Appeals as defendants
17 is particularly appropriate with respect to due process and equal protection claims,
18 as they have systematically failed to provide the process due to Plaintiff and have
19 participated in the unequal treatment of Plaintiff based on his disability. See
20 *United States v. James Daniel Good Real Property*, 510 U.S. 43, 53 (1993)
21 (emphasizing that "the right to prior notice and a hearing is central to the
22 Constitution's command of due process").

23 **Third Claim for Relief: Violation of the Americans with Disabilities Act**
24 **and Section 504 of the Rehabilitation Act**

- 25 1. Plaintiff realleges and incorporates by reference all preceding paragraphs as if
26 fully set forth herein.
- 27 2. Defendants have discriminated against Mr. Tyler on the basis of his disability by
28 failing to provide reasonable accommodations in the electoral process.
- 29 3. Title II of the ADA, 42 U.S.C. §§ 12131-12134, prohibits discrimination against
30 qualified individuals with disabilities in the services, programs, or activities of
31 public entities, including courts and electoral processes.
- 32 4. Section 504 of the Rehabilitation Act, 29 U.S.C. § 794, similarly prohibits
33 disability discrimination in programs receiving federal financial assistance.

- 1 5. In *Tennessee v. Lane*, 541 U.S. 509 (2004), the Supreme Court specifically
2 recognized that Title II of the ADA validly abrogates state sovereign immunity
3 when it comes to access to courts and other fundamental rights.
- 4 6. Defendants' systematic denial of reasonable accommodations constitutes
5 discrimination in violation of the ADA and Section 504.

6 **Fourth Claim for Relief: Conspiracy to Interfere with Civil Rights (18**
7 **U.S.C. §§ 241-242, 42 U.S.C. § 1983, 42 U.S.C. § 1985)**

- 8 1. Plaintiff realleges and incorporates by reference all preceding paragraphs as if
9 fully set forth herein.
- 10 2. Defendants, including Judge Cota and the Ninth Circuit Court of Appeals, have
11 conspired to deprive Mr. Tyler of his civil rights by collectively refusing to
12 accommodate his disability in the electoral process and judicial proceedings.
- 13 3. In *United States v. Price*, 383 U.S. 787, 801 (1966), the Supreme Court
14 recognized that civil rights statutes should be construed with awareness that they
15 were enacted "against the background of the congressional purpose... 'to secure to
16 all citizens the liberty to exercise without unlawful interference their
17 constitutional rights and privileges.'"
- 18 4. The coordinated actions of Defendants, including judicial officials and courts,
19 demonstrate a conspiracy to deprive Plaintiff of his constitutional and statutory
20 rights.

21 **Fifth Claim for Relief: Obstruction of Justice (18 U.S.C. §§ 1503,**
22 **1512(c))**

- 23 1. Plaintiff realleges and incorporates by reference all preceding paragraphs as if
24 fully set forth herein.
- 25 2. Defendants Judge Cota and the Ninth Circuit Court of Appeals have corruptly
26 obstructed, influenced, and impeded the due administration of justice through
27 their systematic refusal to provide relief justified by the evidence.
- 28 3. Judge Cota's summary denial of Plaintiff's March 17, 2025 Motion to Disqualify
29 filed pursuant to 28 U.S.C. § 144 constitutes obstruction of justice, as under
30 *Berger v. United States*, 255 U.S. 22, 35-36 (1921), when a legally sufficient
31 affidavit is filed under § 144, "the judge has no discretion" but must step aside.

- 1 4. The Ninth Circuit's failure to intervene despite clear evidence of judicial
2 misconduct further constitutes obstruction of justice.
- 3 5. These actions have prevented Plaintiff from obtaining fair and impartial
4 adjudication of his claims, obstructing justice in violation of federal law.

5 **Sixth Claim for Relief: Racketeering (18 U.S.C. §§ 1961-1968)**

- 6 1. Plaintiff realleges and incorporates by reference all preceding paragraphs as if
7 fully set forth herein.
- 8 2. RICO defines a "person" as "any individual or entity capable of holding a legal or
9 beneficial interest in property." 18 U.S.C. § 1961(3). All Defendants, including
10 Judge Cota and the Ninth Circuit Court of Appeals, are "persons" under this
11 definition.
- 12 3. RICO defines an "enterprise" as "any individual, partnership, corporation,
13 association, or other legal entity, and any union or group of individuals associated
14 in fact although not a legal entity." 18 U.S.C. § 1961(4). The Supreme Court has
15 held that RICO enterprises should be interpreted broadly. See Boyle v. United
16 States, 556 U.S. 938, 948 (2009) (recognizing that the definition of "enterprise"
17 has a "wide reach" and "no restriction upon the associations embraced").
- 18 4. The coordinated actions of Defendants, including federal and state officials,
19 agencies, and courts, constitute an association-in-fact enterprise that exists for the
20 common purpose of depriving individuals with disabilities of their constitutional
21 and statutory rights and undermining the integrity of the electoral process.
- 22 5. This enterprise has engaged in a pattern of racketeering activity as defined in 18
23 U.S.C. § 1961(1), including but not limited to: a. Obstruction of justice (18 U.S.C.
24 § 1503) through systematic refusal to enforce civil rights laws, deliberate
25 disregard of binding legal precedent, and concerted action to prevent Plaintiff
26 from obtaining relief to which he is legally entitled. In United States v. Aguilar,
27 515 U.S. 593, 598 (1995), the Supreme Court recognized that § 1503 "serves to
28 protect the administration of justice in federal judicial proceedings." b.
29 Obstruction of court proceedings (18 U.S.C. § 1512(c)) through the deliberate
30 manipulation of judicial procedures to prevent fair consideration of Plaintiff's
31 claims. The Supreme Court in Arthur Andersen LLP v. United States, 544 U.S.
32 696, 708 (2005), recognized that this statute prohibits the corrupt obstruction of
33 official proceedings. c. Wire fraud through use of government computers (18
34 U.S.C. § 1343) in communicating false information regarding ballot access

1 requirements and processing Plaintiff's accommodation requests. In *Carpenter v.*
2 *United States*, 484 U.S. 19, 27 (1987), the Supreme Court held that § 1343 must
3 be interpreted broadly to effectuate its purpose of preventing the use of interstate
4 communications to further fraudulent schemes. d. Honest services fraud (18
5 U.S.C. § 1346) through the deprivation of citizens' right to the honest services of
6 their government officials. In *Skilling v. United States*, 561 U.S. 358, 408-09
7 (2010), the Supreme Court recognized that § 1346 applies to "paradigmatic cases
8 of bribes and kickbacks," as well as undisclosed conflicts of interest that prevent
9 public officials from discharging their constitutional and statutory duties. e. Mail
10 fraud (18 U.S.C. § 1341) through the use of the postal service to transmit
11 fraudulent election materials and misleading information regarding ballot access
12 requirements. In *Schmuck v. United States*, 489 U.S. 705, 715 (1989), the Court
13 recognized that "the mail fraud statute remains an important weapon in combating
14 fraud of all types."

- 15 6. This pattern of racketeering activity has occurred over a substantial period of
16 time, beginning at least as early as February 2024 when Plaintiff first submitted
17 his accommodation requests, and continues to the present day. The Supreme Court
18 in *H.J. Inc. v. Northwestern Bell Telephone Co.*, 492 U.S. 229, 242 (1989), held
19 that a pattern requires predicate acts that "amount to or pose a threat of continued
20 criminal activity." The ongoing nature of Defendants' scheme satisfies this
21 continuity requirement.
- 22 7. Each Defendant has participated in the operation or management of the enterprise
23 by knowingly carrying out specific roles in furtherance of the common purpose: a.
24 Judge Cota has participated by systematically denying Plaintiff's motions, refusing
25 to enforce civil rights laws, and weaponizing Plaintiff's disability against him. In
26 *Reves v. Ernst & Young*, 507 U.S. 170, 179 (1993), the Supreme Court held that
27 RICO liability extends to those who "participate in the operation or management
28 of the enterprise itself." b. The Ninth Circuit Court of Appeals has participated by
29 abdicating its supervisory authority, refusing to provide relief justified by the
30 evidence, and implementing procedures that disparately impact disabled litigants.
31 c. State officials have participated by implementing discriminatory ballot access
32 requirements, refusing to process accommodation requests, and engaging in a
33 coordinated campaign to exclude Plaintiff from the electoral process. d. The
34 Department of Justice has participated by systematically failing to investigate and
35 prosecute civil rights violations, despite its statutory mandate to do so.

8. Defendants have conducted the affairs of this enterprise through this pattern of racketeering activity, in violation of 18 U.S.C. § 1962(c).
9. Defendants have conspired to violate 18 U.S.C. § 1962(c), in violation of 18 U.S.C. § 1962(d). In *Salinas v. United States*, 522 U.S. 52, 65 (1997), the Supreme Court held that a defendant may be liable for RICO conspiracy even if they do not personally commit predicate acts, so long as they agree to the overall objective of the conspiracy.
10. Plaintiff has been injured in his business and property as a result of Defendants' violations of 18 U.S.C. § 1962, including: a. Loss of opportunity to participate in the electoral process b. Deprivation of constitutional and statutory rights c. Expenditure of resources attempting to secure legally mandated accommodations d. Loss of professional opportunities and reputation e. Emotional distress and pain and suffering resulting from systematic discrimination
11. Pursuant to 18 U.S.C. § 1964(c), Plaintiff is entitled to recover treble damages, costs, and attorneys' fees from Defendants.

Seventh Claim for Relief: Treason (Article III, Section 3 of the U.S. Constitution; 18 U.S.C. § 2381)

1. Plaintiff realleges and incorporates by reference all preceding paragraphs as if fully set forth herein.
2. Owing allegiance to the United States, Defendants have adhered to the enemies of the United States, giving them aid and comfort, through the national intentional interference and tampering with the 2024 U.S. Election to provide aid and comfort to their preferred candidates.
3. By systematically excluding qualified candidates with disabilities from the electoral process, Defendants have undermined the constitutional order and democratic processes of the United States, constituting treason.

Additional Claims for Relief

1. Plaintiff also brings claims for: a. Interfering with federally protected activities (18 U.S.C. § 245(b)(1)(A), (B), (E)) b. Violating the 1990 Copenhagen Commitment c. Negligence to prevent (42 U.S.C. § 1986) d. Interference by administrative employee (18 U.S.C. § 595) e. Failure to request funds (42 U.S.C. § 2000d-6(d)) f. Failure to promulgate and denial of benefits (29 U.S.C. § 794(a))

g. Failure to induce compliance (28 C.F.R. § 42.108(a)) h. Failure to investigate alleged violations (42 U.S.C. § 12188(b)(1)(A)(i)) i. Failure to coordinate compliance (28 C.F.R. § 35.190(a)) j. Failure to investigate Section 504 complaints (28 C.F.R. § 35.171(ii)(3)(i)) k. Failure to notify the public entity of the receipt and acceptance of the complaint (28 C.F.R. § 35.171(c)(1)) l. Failure to investigate complaints (28 C.F.R. § 35.172(a)) m. Failure to attempt informal resolution (28 C.F.R. § 35.172(c)) n. Violation of federal anti-discrimination laws (42 U.S.C. § 2000a(d)) o. Hate crimes (18 U.S.C. § 249(a)(1)-(2)) p. Theft of public resource/property in the commission of a crime q. Fraud scheme (18 U.S.C. § 1341) r. Wire fraud, government computers used in the commission of crimes (18 U.S.C. § 1343) s. Violation of 18 U.S.C. § 1503 t. Owing allegiance to the U.S., failure to disclose treason (18 U.S.C. § 2382) u. Imposing eligibility criteria that screens out or tends to screen out an individual with a disability (28 C.F.R. § 35.130(b)(3), (6), (8); 42 U.S.C. § 12182(b)(1)(A)(i), (2)(A)(iii)) v. Refusing to make reasonable modifications (28 C.F.R. § 35.130(b)(1)(i)-(vii), (2), (7); 42 U.S.C. § 12182(b)(2)(A)(ii)) w. Failing to demonstrate how honoring Mr. Tyler's Section 504/ADA request for reasonable modifications would fundamentally alter anything (28 C.F.R. § 35.164)

XXII. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

1. Immediately reassign this case to a different judge who can provide fair and impartial consideration of Plaintiff's claims, pursuant to 28 U.S.C. §§ 144 and 455;
2. Order service of process on all newly added defendants by the United States Marshals Service pursuant to 28 U.S.C. § 1915(d);
3. Declare that Defendants' actions violate the First, Fifth, and Fourteenth Amendments to the U.S. Constitution, the ADA, Section 504 of the Rehabilitation Act, RICO, and other applicable laws;
4. Declare the entire 2024 Presidential election proceedings, results, and any resulting orders as "Fruit of the Poisonous Tree" tainted by the widespread, national election interference and tampering by state-level personnel in all 50 states;

- 1 5. Order the termination of, or refuse to grant or continue, federal financial
2 assistance to all 50 states pursuant to federal financial anti-discrimination
3 requirements;
- 4 6. In California, order the enforcement of California Government Code §§ 11135-
5 11139;
- 6 7. Issue a preliminary and permanent injunction requiring Defendants to provide
7 reasonable accommodations for Mr. Tyler's disabilities in all electoral processes
8 and judicial proceedings: a) Modify ballot access requirements to accommodate
9 disabilities; b) Implement policies ensuring equal access to election process; c)
10 Properly investigate and remedy civil rights violations; d) Cease discriminatory
11 practices;
- 12 8. Order Defendants to institute criminal prosecutions against all persons violating
13 civil rights statutes, as required by 42 U.S.C. § 1987;
- 14 9. Award compensatory damages in an amount to be determined at trial;
- 15 10. Award punitive damages against the individual defendants in their personal
16 capacities;
- 17 11. Award treble damages under RICO, 18 U.S.C. § 1964(c);
- 18 12. Award Mr. Tyler his costs and reasonable attorneys' fees pursuant to 42 U.S.C. §
19 1988, 18 U.S.C. § 1964(c), and other applicable fee-shifting provisions;
- 20 13. Grant such other and further relief as the Court deems just and equitable.

21 **DEMAND FOR JURY TRIAL**

22 Plaintiff hereby demands a trial by jury on all claims so triable.

1 **VERIFICATION**

2 I, Mathew Tyler, declare under penalty of perjury under the laws of the State of California
3 that the foregoing is true and correct to the best of my knowledge and belief.

4
5 Executed on _____, at Butte County, California.



8 **Mathew Tyler**

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13 **Plaintiff, Pro per pro se**